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Senate of Virginia Floor Session, Thursday, February 26, 2026

Date	Thursday, February 26, 2026
Place	Senate of Virginia, Senate Chamber, State Capitol, Richmond
Length	5h 31m (video)

- Official floor video (Senate of Virginia, YouTube): https://www.youtube.com/watch?v=Mm--Ado_axs
- LIS Senate minutes: https://lis.virginia.gov/session-details/20261/minutes-list/S

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[00:00:01] This is the Senate of Virginia, Richmond, Virginia.

[00:00:17] Senate chamber.

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[00:02:16] This is the Senate of Virginia, Richmond, Virginia.

[00:03:45] Senate chamber.

[00:04:22] This is the Senate of Virginia, Richmond, Virginia.

[00:06:56] Senate chamber.

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[00:16:01] Richmond, Virginia.

[00:16:05] Chamber.

[00:17:03] This is the Senate of Virginia.

[00:19:06] Richmond, Virginia.

[00:19:08] Senate Chamber.

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[00:21:20] This is the Senate of Virginia.

[00:22:21] Richmond, Virginia.

[00:22:23] Senate Chamber.

[00:23:24] This is the Senate of Virginia.

[00:25:27] Richmond, Virginia.

[00:25:28] Senate Chamber.

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[00:28:09] This is the Senate of Virginia, Richmond, Virginia, Chamber.

[00:29:45] This is the Senate of Virginia, Richmond, Virginia.

[00:32:03] The Senate will come to order.

[00:32:21] The Senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The Senators and all in attendance will please stand. We will be led in prayer today by Bishop Oren Pulling Sr.

[00:32:38] from the United Nations Church in Richmond. And following the prayer, everyone will please remain standing and be led in the Pledge of Allegiance to the Flag of the United States of America by Senate Page Olivia Schmidt-Cousins of Richmond.

[00:32:54] Let's bow our heads. Heavenly Father, creator of all people, the source of wisdom, justice, and peace, we humbly come before you today with grateful hearts. We thank you for the privilege of this gathering in this chamber, for the opportunity to serve, and for the responsibility entrusted in these leaders. We acknowledge that leadership is not simply a position of authority, but a sacred stewardship to serve with integrity, humility, and honor.

[00:33:25] Lord, we ask that you grant wisdom to every senator present. Let wisdom guide their decisions, clarity guide their thinking, and compassion guide their actions. Help them to deliberate with respect, to listen with understanding, and to act with courage for the good of all people. Bless the

Commonwealth of Virginia, strengthen our cities, uplift our communities, and unite our citizens. Let that justice prevail over division, cooperation prevail over conflict,

[00:34:03] and hope prevail over fear. We pray for our local leaders, our state leaders, and our national leaders. Grant them discernment beyond human understanding. Help them to pursue what is right, not what is easy.

[00:34:20] What is just, not what is popular. And what serves the people, not personal gain. Lord, bless the families of those who serve for their sacrifices, often go unseen. Protect those who defend our freedoms, comfort those who are hurting, provide for those in need, heal our land, restore unity among us.

[00:34:47] May every decision made here reflect integrity. May every voice be heard with dignity. May every action contribute to the peace, strength, and future of this great commonwealth and nation. Let this chamber be a place of wisdom, fairness, and honorable service.

[00:35:08] We ask for your guidance to continue in our peace, continue in your favor over this session, and over all who serve. In your holy name we pray. Amen. I pledge allegiance to the flag of the United States of America.

[00:35:29] and to the Republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:36:05] The Clerk will call the roll. All those present, please vote aye. The Clerk will close the roll. You have a quorum, Madam President. Senate Journal for Wednesday, February 25th, 2026.

[00:36:24] The Senator from Portsmouth moves that the reading of the journal be waived. All in favor of waiving the reading of the journal will record their vote aye. opposed? No. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 31, noes 9. Ayes 31, noes 9. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. The senator from Eastern Fairfax. Good afternoon, Madam President. Good afternoon. Madam President, move to wave

[00:37:01] reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived. All in favor of waiving the reading of the communication from the House of Delegates will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 29, noes 9. Ayes 29, noes 9. The reading of the communication is waived. The clerk will report any communication from the

[00:37:39] Governor. I do not have any Madam President. We have now arrived at the time in our morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the Senate gallery and I provide my daily reminder about our procedure. A senator will rise and provide an introduction for his or her guests who are joining us in the gallery. I will then offer the welcome of the Senate. I ask that we all hold our applause until I've had the opportunity to provide the Senate's welcome. The chair recognizes a senator

[00:38:19] from Richmond City. Thank you, Madam Chair. I rise for the purpose of an introduction. Senator has the floor. Yes, ma'am. Madam President, I want to introduce our morning prayer. The person

who shared our morning prayer, Bishop Oren K. Pullings, Sr., fourth-generation preacher with deep roots in the Church of God in Christ asked that he would stand in the gallery.

[00:38:46] Bishop Pullings has devoted his life to empowering people to believe God for the impossible, not only in spirit, but in everyday life. As senior pastor of the United Nations Church International in Richmond and presiding bishop of United Nations International Church Fellowship, his leadership has planted churches, restored families, and strengthened communities from New York to Virginia, even down to North Carolina.

[00:39:12] But Madam President, his ministry does not stop at the pulpit. When Hurricane Katrina devastated families back in 2005, he didn't simply pray, he acted. He organized free housing for hundreds of displaced families, offering hope when hope was in short supply.

[00:39:28] For his unwavering service, the city of Richmond, city council, presented him with the key to the city. But to those whose lives he has changed, would tell one simple story that he held a key to their hearts. Madam President, you know of his work because you have been and shared with both he and his wife, and they are a wonderful pair in ministry, and he has been a betterment to the Richmond Metropolitan Area.

[00:39:59] I count him not just a colleague, but as a friend, and so I would ask that the Senate welcome him and give him a warm reception this morning. Thank you, Madam President. Thank you, Senator, for that introduction. And please remain standing, Bishop. We are so delighted and honored to have you here today.

[00:40:17] Thank you for the prayer of blessings that you offered upon the Senate and on our community. Thank you for the extensive work that you do throughout so many communities, as the Senator highlighted. And I think our Senator said it best, the key to our hearts.

[00:40:33] Thank you for your dedicated service to so many. Senators, I ask that we give the very warm welcome of the Senate to Bishop Oren K. Pulling, Senior of United Nations Church in Richmond.

[00:40:54] The senator recognizes, I'm sorry, the chair, the chair, who am I? It's already been a long day. The senator from Stafford, who let us go on to the senator from Eastern Henrico.

[00:41:17] Madam president, I rise for an introduction. The senator has the floor. Thank you so much, Madam president. It is my distinct honor today to rise and recognize an extraordinary young man whose discipline, humility, and excellence has elevated his university while making history for our commonwealth. I would ask that Mr. Curtis Allen and his family and guests please rise.

[00:41:45] Madam President, today I rise to introduce Mr. Curtis Allen of Petersburg. Mr. Allen is a senior running back at Virginia Union University right here in Richmond. He has been named the 2025 recipient of the Harlan Hill Trophy, the most prestigious individual honor in NCAA Division II football.

[00:42:07] With this achievement, Curtis Allen becomes the first student athlete from Virginia Union University, The first from the CIAA and the first from any HBCU to earn this distinction. This is a breakthrough moment for HBCU athletics on the national stage.

[00:42:26] Madam President, Mr. Allen delivered one of the most dominant seasons Division II football has ever witnessed. He led all divisions of college football in rushing yards, rushing touchdowns, total

touchdowns, scoring, and rushing yards per game. He rushed for 2,386 yards, winning the national rushing title by more than 400 yards and scored 30 rushing touchdowns, totaling 180 points.

[00:42:53] He surpassed 100 rushing yards in every single game. He eclipsed 200 yards four times, and on November 1st, in a performance for the ages, he rushed for 369 yards. Madam President in an error defined by transfer portals and instant gratification he chose patience for three seasons he waited behind now professional football player Jada Byers he developed he prepared he believed in his program and when the opportunity arrived he seized it. Madam President at

[00:43:32] six foot two and two hundred and fifteen pounds he runs with vision he runs with power yet off the field he is soft-spoken faith-driven and deeply grounded in his family he joins us this morning with his mother tara his father curtis and his coach diego ryland madam president later today this body will take up senate joint resolution 106 commending him mr allen for his historic achievement on behalf of myself senator jones please join me in welcoming

[00:44:07] mr curtis allen a champion a history maker and a proud representative of the commonwealth of virginia madam president i ask that you join me in giving him the warm welcome of the senate i got ahead of myself they well after that wonderful and rousing introduction well-deserved applause for our guest mr curtis allen as well as his family thank you so much uh for joining us but

[00:44:46] what exemplary record that our senator has shared we are so proud of all of your accomplishments we know your family is tremendously proud of all that you do and really it's what you do off the playing field that represents the honor and the integrity with which you play so thank you for all of your commitment your dedication to your profession as well as to the larger community that you represent. We know that Virginia Union University is so proud of you as well. Senators, I now ask that we give the very warm welcome of

[00:45:25] the Senate to our guest, Mr. Curtis Allen and his family. The chair recognizes the senator from Western Henrico. Thank you, Madam President. Madam President, I rise for an introduction. The senator has the floor. Thank you, Madam President. Madam President, members of the body, today joining us in the gallery are members of Virginia chapter of the American Nuclear Society if they would please stand a

[00:46:04] different kind of energy and I have we have Sandra Sloan president of the Virginia ANS chapter April Wade executive director of the Virginia nuclear energy executive director of the Virginia nuclear energy consortium say that ten times fast and Jeff Witt executive director of the Virginia innovative nuclear hub along with other representatives they advance and promote the development and application of nuclear science and technology for the benefit of society and their members are here today to talk to legislators and discuss Virginia's leadership and nuclear capability and expertise. We continue to set the pace in advancing new reactor designs and

[00:46:44] Virginia-based companies like Huntington Ingalls, BWX Tech, Framatome, Dominion and APCO support both the US Navy and the commercial nuclear fleet and are well positioned to help build and service the next wave of nuclear technology I hope we give them a warm senate welcome thank you senator for the introduction and welcome to the representatives of the American nuclear society as we just heard from our senator the remarkable work that you are doing in this particular field is so critical for us especially as we seek new and effective energy options that is is going to be absolutely critical

[00:47:21] for not just us here in the commonwealth but all throughout the country and the world in fact thank you for your tremendous leadership in this uh in this area senators i ask that we give the very warm welcome of the senate to the representatives of the american nuclear society the senator from lynchburg thank you madam president i rise for the purposes of an introduction senator has the floor thank you madam president in the gallery today we have

[00:48:00] members of the brookville high school political science club and i would ask that they please rise if they are in the gallery there they are there they are uh believe it or not so the these are representatives from brookville high school which is located in campbell county madam president and believe it or not purely coincidental the mascot their name brookville high school bees the brookville bees very important in uh in campbell county and lynchburg and if you look at the picture of their mascot as i have i'm almost 93 certain that the mascot is a

[00:48:39] brown belted bumblebee members of the senate so it is very nice to have them in the gallery today they are accompanied by their teacher mr aaron scott and campbell county school board member ann parker who i don't think they have made it in yet these outstanding young people from campbell county represent the very best of our commonwealth and the promise and future of the commonwealth they're here today to learn more about the work that we do in the historic capital and to learn how their government functions i've had the opportunity to meet with these folks

[00:49:14] earlier today and i can tell you that they are engaged and enthusiastic and learning about everything that shapes the issue the issue shaping the commonwealth they're insightful questions and eagerness and their community participation should all give us confidence in the next generation. If you see them walking around the building today I'd ask you to please give the Brookville Bees the warm welcome of the Senate and I'd ask that the members here today please give our guests from Brookville High School the warm welcome of the Senate. Thank you Senator for the introduction and welcome to the Political Science Club of Brookville

[00:49:52] High School. Thank you for engaging on so many different critical issues and I'm glad you've had the opportunity to meet with a senator from Lynchburg. I hope you've been talking to many of our legislators about the issues that are important to you. We count on you for leadership as you continue to grow and move forward in whatever careers you are choosing to pursue and we're so delighted that your teacher, Aaron Scott, is here with us as well. Happy to have you joining us in the Senate gallery. And as you heard from our senator, he has a particular affinity for anything

[00:50:31] B-related. And so he was especially delighted to hear about your mascot, I think. So senators, I hope that we give the warm welcome of the Senate to the Brookville High School Political science club the senator from isle of white thank you madam president i rise for an introduction senator has the floor thank you madam president in the gallery today we have the virginia asphalt association as i celebrate an extraordinary milestone and anniversary of 75 years of service

[00:51:10] in our commonwealth for three quarters of a century the virginia asphalt association has represented industry that quite literally paves the way for progress across our state from rural roads in south side virginia to major transportation corridors connecting our economic centers their members play a critical role in building and maintaining the infrastructure that keeps virginia moving but what makes their anniversary especially meaningful is not just longevity its leadership the association its members have been at the forefront of environmental sustainability embracing the reuse of recycled

asphalt pavement and other reclaimed materials to reduce waste conserve our natural resources and lower emissions through advanced recycling technologies and

[00:51:49] innovative production practices they're proving that infrastructure development and environmental stewardship can also go hand in hand 75 years ago this organization set up with a mission to support quality durability and professionalism in the asphalt industry today they stand as a model of innovation responsibility and forward-thinking leadership on behalf of the virginia senate and this body madam president i hope we would give the virginia asphalt association the warm welcome of the virginia senate thank you senator for the introduction and welcome to the representatives of of the Virginia Asphalt Association, as the senator enumerated, the critical work that our Asphalt Association and its members do

[00:52:28] on so many critical infrastructure concerns is really valued. We appreciate everything that you are committed to doing, and most especially the ways in which the association is looking out for its workers and worker safety.

[00:52:47] that is so critically important for all of us. Senators, I ask that we give the very warm welcome of the Senate to the Virginia Asphalt Association.

[00:53:05] The chair recognizes the Senator from Mecklenburg. - Thank you, Madam President, I rise for an introduction. - Senator has the floor. - Thank you. It is my pleasure today to introduce a group of dedicated professionals who play a vital role in strengthening communities across the Commonwealth.

[00:53:24] I do so on behalf of my colleagues, the gentlemen from Lynchburg, Prince Edward, and Charlottesville. Joining us today are members of the Lynchburg Association of Realtors, the Southern Piedmont Land and Lake Association of Realtors, and the Dan River Regional Association of Realtors.

[00:53:40] If you got, whoa, we got a big bunch. So, in this group are my association of realtors. I'm very excited to have them here today. These associations represent realtors and real estate professionals who serve families, property owners, farmers, and small businesses throughout the central and south side of Virginia.

[00:53:59] from the foothills of the blue ridge to the farms lakes and growing downtowns of their region these realtors are on the front lines of the american dream of home ownership they help virginians buy their first homes grow their businesses invest in land and build generational wealth i should say that we are small business owners community leaders and strong advocates for private property rights in a vibrant real estate world but john beyond our work in real estate we are deeply engaged in our communities more local charities serving on civic boards partnering with local governments to ensure responsible growth and economic opportunities

[00:54:38] we are grateful for the commitment to the commonwealth and for taking the time to be with us here today i hope you will join us in giving these fine realtors of which i am one of and I think we've got a couple of other members here that are realtors and one day I will be back making some money in real estate again but for now keep up the good work but let's welcome them to the senate they're a bunch of good people thank you senator for the introduction and welcome to the representatives of Virginia Realtors Association we heard from the senator that

[00:55:14] you represent so many of our different localities and certainly appreciate the work of our senator in this profession as well. Thank you for your commitment to making sure that Virginians have

access to your critical services, access to the housing needs that serve all of our communities.

[00:55:35] We deeply appreciate the work that you do each and every day for our Virginians. Senators, I ask that we give the very warm welcome of the Senate to the representatives of the Virginia Realtors Association.

[00:55:55] The chair recognizes the senator From Eastern, Prince William. Madam President, I believe the individuals have left for the introduction.

[00:56:11] Thank you, Senator. Is there any other business for the morning hour? The clerk will call the calendar.

[00:56:32] February the 26th, 2026. Page 4, Unfinished Business Senate. Senate Bill 8 has passed the House with a substitute.

[00:56:51] The Senator from Eastern, Prince William. Thank you, Madam President. Madam president with the recommendation that the house substitute be rejected I move that the substitute be agreed to and speaking to that motion the senator has the floor. Thank you madam president The house removed the Medicaid exclusion Which creates a significant fiscal impact and we believe that this can be addressed in conference with the recommendation That it be rejected the question is shall the Senate concur with the house

[00:57:26] substitute all in favor of the motion will record their votes aye those opposed no are the senators ready to vote Have all the senators voted do any senators desire to change their vote the clerk will close the roll 0 knows 39 I 0 knows 39 the Senate does not concur Senate bill 75 has passed the house with a substitute

[00:58:02] senator from portsmouth thank you madam president madam president i move we concur with the house substitute would the senator like to speak to that motion madam president i'd like to speak to that senator has the floor what it does uh madam president clarifies that the term law enforcement officer is used in relevant law relating to emergency and involuntary civil transportation includes retired law enforcement officers defined in the bill for the purpose of

[00:58:35] laws related to emergency custody and involuntary temporary detention the question is shall the Senate concur with the House substitute for Senate bill 75 all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no 0 ayes 40 no 0 the - Senate concurs.

[00:59:11] - Senate Bill 133 has passed the House with a substitute. - Senator from Hampton. - Thank you, Madam President. I move that we concur with the House substitute and speaking to that. - Senator has the floor. - The House substitute adds a code reference to the Federal Child Abuse Prevention and Treatment Act, which defines plans of safe care.

[00:59:31] Plans of safe care are a federal requirement, but are not currently defined in the Virginia Code. This needs to be addressed in the work group. of safe care are associated with earlier and more adequate prenatal care, better maternal engagement and treatment, and improved maternal infant outcomes.

[00:59:48] Additionally, on line 12 of the bill, the substitute replaces the word study with evaluate. Again, I move that we concur with the house substitute. The question is, shall the Senate concur with a house substitute for Senate Bill 133?

[01:00:06] all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 40 no zero ayes 40 no zero the Senate concurs Senate bill 161 has passed the house with a substitute the senior senator from Loudon my president with the recommendation that we reject the substitute. I move we concur with the house substitute speaking to that motion. Senator

[01:00:43] has the floor. The house put a reenactment clause on this good affordability bill that and we know that people need help with their prescriptions now. This bill deals with folks who have long-term or very serious terminal illnesses or cancer diagnoses and other things like that. It helps make sure that they can afford their prescriptions, Madam President.

[01:01:04] So with that, I would move that we reject the substitute. Thank you, Madam President. With the recommendation that it be rejected, the question is, shall the Senate concur with a House substitute for Senate Bill 161? All in favor of that motion will record their votes aye.

[01:01:22] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Aye zero, no's 40.

[01:01:39] Aye zero, no's 40. The Senate does not concur. Senate Bill 215. pass the house with amendment the senator from northern fairfax thank you madam president i move we concur with the house amendment would the senator like to speak to that motion thank you madam president it's it's really a technical change from the way it left the the senate to now it simply says that if an employer does not um does not provide a posting for a wage salary

[01:02:18] and they have 15 days and and if they correct it then there would be no action brought upon them so it just slightly changed the way we we addressed it and i moved that we pass the uh concur house amendment the question is shall the senate concur with the house amendment for senate bill 215 all in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the

[01:02:54] roll eyes 21 nose 19 eyes 21 nose 19 the senate concurs senate bill 240 230 248 has passed the house with his amendments the senator from the junior senator from loudon thank you madam president um madam president i move the senate concur with the house amendments and speaking to to that motion. Senator has the floor. Thank you, Madam President. The House

[01:03:30] amendments are minor and technical in actually in grammar and punctuation corrections to confirm the bill to House Bill 373. They removed a comma and they capitalized the word internet. I renew my motion that the Senate concur with the House amendments. Thank you. The question is, shall the Senate concur with the House amendments on Senate bill 248 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[01:04:10] the roll as 24 nose 16 eyes 24 nose 16 the Senate concurs Senate bill 282 has pass the house with amendment the senator from Eastern Henrico thank you so much madam president I move that the Senate concur with the house amendments and speaking to that motion the senator has the floor thank you madam president this amendment simply adds two words was or on line 28 I renew my motion the question

[01:04:43] is shall the Senate concur with a house amendment for Senate bill 282 all in favor of that motion will record their votes aye those opposed no are the Senators ready to vote. Have all the Senators voted? Do any Senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0.

[01:05:13] The Senate concurs. Senate Bill 291 has passed the House with a substitute. Senator from Eastern Henrico. Thank you Madam President. I move that the Senate concur with the House substitute and speaking to that motion. Senator has the floor. Thank you Madam President. Right now on line 81 it reads consistent with but not identical to and the house has made it so that we add a comma and not necessarily identical to i ask that we uh i renew my motion that we concur the question is shall the senate concur with the house substitute for senate bill 291 all in favor of that motion will record their votes i those

[01:05:52] oppose no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The Senate concurs.

[01:06:12] Senate Bill 315 has passed the House with the substitute. Senator from Norfolk. Thank you, Madam President. Madam President, I move that the Senate concur with the House substitute and speaking to that motion. Senator has the floor. The House substitute for SB 315 maintains the core structure and protections that this body previously adopted to safeguard Virginia's veterans from predatory practices in the VA disability claims process, the house made one substantive enhancement. The substitute adds a mandatory refund provision, specifically if a

[01:06:48] veteran's award of benefits is later reversed, the service provider must refund any compensation collected. This ensures that compensation remains tied to legitimate sustained increase in benefits, It's not simply a temporary award.

[01:07:06] There is a narrow and reasonable exception. If benefits are later reduced due to improving functionality, a refund is not required. That exception recognizes that some reductions occur because a veteran's condition has improved, not because of error or improper advocacy.

[01:07:26] This amendment strengthens the consumer protection framework of the bill, and I renew my motion that we concur with the house substitute the question is shall the Senate concur with the house substitute on Senate bill 315 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 38 noes 2 ayes 38 noes 2 the Senate concurs Senate bill

[01:08:02] 332 has passed the house with a substitute the senator from arlington thank you madam president madam president i move that we concur with the house substitute and speaking to that motion the senator has the floor thank you madam president um the house substitute now is identical to senate bill 332 which passed the senate on a vote of 39 to 1. so what the bill does just a quick reminder It allows for oil, cannabis to be used in hospitals for medical purposes.

[01:08:35] It's already available with hospice and other clinics and centers of care. So we allow it for hospitals in this bill, and we also set up a work group that charges the Department of Health with other stakeholders to look at the intersection of federal regulations as they are evolving in relating to moving cannabis from different substance control categories and how that would affect going forward.

[01:09:10] Report is due. Senator will pause. Senate will be at ease.

[01:10:04] Thank you, Madam President. So I will just conclude by saying I hope it is the will of the body to concur with the House substitutes since it honors what the Senate passed. The question is, shall the Senate concur with the House substitute for Senate Bill 332?

[01:10:24] All in favor of that motion will record their votes aye, those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll.

[01:10:43] Ayes 39, noes 1. Ayes 39, noes 1. The Senate concurs. Senate Bill 340 has passed the House with a substitute. the senior senator from loudon thank you madam president madam president i move that we concur with the house substitute in speaking to that motion senator has the floor this is the bill that creates a definition for agrivoltaics uh and in the house they just removed a part of the title of the bill that says there's an advisory panel that is not part of the bill anymore and so it

[01:11:19] just deleted that that part of the title to make the title actually reflect what is in the bill thank you madam president the question is shall the Senate concur with a house substitute for Senate bill 340 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[01:11:56] the roll ayes 28 noes 12 ayes 28 noes 12 the Senate concurs Senate bill 358 has pass the house with a substitute the senator from Hanover thank you madam president madam president with a recommendation it be rejected a move that the house substitute be agreed to speaking to that senator has the floor madam president both bodies just put their version on I've been in conversations with delegate watts I think we can come to a solution once we

[01:12:31] get to conference the question with the recommendation that it be rejected the Question is, shall the Senate concur with the House substitute for Senate Bill 358? All in favor of that motion will record their votes.

[01:12:47] Aye, those opposed. No, are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:13:04] Aye, zero, no, 40. Aye, zero, no, 40. The Senate does not concur. Senate Bill 373 is passed the House with the substitute. senator from northern fairfax thank you madam president i move that we concur with the house substitute um and speaking to the bill this senator has the floor this is the warrant of habitability it um clarifies that the um the renter is still responsible for their rent it takes off the um

[01:13:39] takes off the requirement that they i'm sorry i don't have it in front of me um takes off the that they put the money in escrow believe that the house and the senate are on the same page and i move that we report vote yes to concur the question is shall the senate concur with a house substitute for senate bill 373 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change

[01:14:12] their vote. The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. The Senate concurs. Senate bill 398 has passed the House with a substitute. The senior senator from Loudoun. Madam President, with a move that we reject the substitute in speaking to that motion. Senator has the floor. This is the birth injury fund and it seeks to create the the bill seeks to create several several

[01:14:50] changes to the program to make sure that the program is working efficiently and effectively the house the version has about four differences but I think it's just something we need to end up in conference I spoke with Senate Finance this morning as well they have some concerns about the way the bill has sort of come out and but I think we can get it all ironed out conference so I would just ask that we reject the substitute thank you madam president with the recommendation that it be rejected the question is shall the Senate concur with the house substitute for Senate bill 398 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[01:15:26] senators voted do any senators desire to change their vote the clerk will close the roll 0 knows 40 I 0 knows 40 the Senate does not concur Senate bill 401 has passed the house with a substitute the senator from Isle of Wight thank you madam president I move that we concur with the house substitute in speaking to that senator has the floor thank you madam president the technical changes to this were there's fairly minor we added verbiage in such as readily

[01:16:04] accessible we clarified the 10-day time period and also indicated whether systems are operating properly as intended amongst the minor changes to the bone I so move the question is shall the Senate concur with the house substitute for Senate bill 401 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the Senate concurs Senate bill 493 has

[01:16:44] passed the house with the substitute the senator from Western Fairfax madam President with the recommendation that it be rejected I move the house's substitute and speaking to that senator has the floor thank you we just need to work a little bit with DLS on some technical issues of this bill to make sure that this portion is not in conflict with some of the language in the latter portion of the act but it's it's technical it's not nothing very substantive with the recommendation that it be rejected the question is shall the senate concur

[01:17:21] with the house substitute all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll uh zero knows 40. i zero knows 40 the senate does not concur

[01:17:56] Senate bill 4596 pat has passed the house with a substitute senator from eastern fairfax prince william thank you madam president madam president i move that the senate concur with the house substitute in speaking to that motion senator has the floor thank you madam president the house substitute is not inherently different from the version that passed out of the senate the house substitute includes some minor differences in the language but does not have a difference in impact on assures or coverage specifically the house version defines contraception as an action taken to prevent pregnancy contraceptive definition and the house

[01:18:33] bill refers to products legally marketed under the federal food drug and cosmetic act and it removed the duplicative unnecessary reference to minors consent because it's already addressed in a different code section The question is, shall the Senate concur with the House substitute for Senate Bill 596?

[01:18:57] All in favor of that motion will say aye. I'm sorry. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:19:14] The clerk will close the roll. Ayes 23, noes 17. Ayes 23, noes 17. The Senate concurs. Senate Bill 605 has passed the House with amendment. The Senator from Rockingham.

[01:19:29] Madam President, move that we concur with the House amendment. Speaking that-- Senator has the floor. This bill deals with former CPAs. The House simply added previous CPAs to one of the enactment provisions.

[01:19:46] Technical, move to concur. The question is, shall the Senate concur with the House amendment to Senate Bill 605. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no zero. Ayes 40, no zero. The Senate

[01:20:12] concurs. Senate Bill 665. Pass the House with amendment. The junior senator from Loudoun. Thank Thank you, Madam President.

[01:20:27] I move that the Senate concur with the House Amendment and speaking to that motion. Senator has the floor. Thank you, Madam President. The House Amendment simply seeks to restore the original reporting deadline for local governments to submit their annual housing report to DHCD from August to September.

[01:20:45] This request came at the behest of the Secretary of Commerce and Trade. Thank you. The question is, shall the Senate concur with the House Amendment to Senate Bill 665? in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 19 ayes 21 nose 19 the senate concurs the senate bill 677 has passed the house

[01:21:22] with amendment. The Senator from Bottetot. Thank you Senator. Thank you Madam President. I move that we concur with the House amendments and speaking to that.

[01:21:40] Senator has the floor. Thank you Madam President. This this bill deals with certain group homes that had previously been mistakenly required to if they were going to have a kitchen to follow restaurant guidelines but there was one changed was referenced in the bill as initially introduced it said home-based childcare that actually should have been changed to family day home so it's a technical amendment so I would hope that we would accept these amendments the question is shall the Senate concur with a house amendment to Senate bill 677 all in favor of that motion will record their votes aye those opposed no are the

[01:22:17] senators ready to vote have all the senators voted do any senators desire to changed their vote. The clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. The Senate concurs. Senate Bill 680 has passed the house with a substitute. The senator from Baudetat. Could that bill go by for the day? Without objection, Senate Bill 680 goes by for the day. Senate Bill 765 has

[01:22:54] passed the house with a substitute. Senator from Richmond City. Thank you Madam President. With the The recommendation that the House substitute be rejected, I move that the substitute be agreed to, and speaking to that motion -- Senator has the floor.

[01:23:10] Thank you, Madam President. Our bills align in most key areas with the increase of age from 18 to 21, allowing the allowance of buy-ins up until the first, second hour of the tournament.

[01:23:27] we differ and what we will need to work out in a conference is the fact of cash games between members of each organization and with that I renew my motion with the recommendation that it be rejected the question is shall the Senate concur with the House substitute all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the Senators voted. Do any Senators desire to change their vote? The clerk will close the roll.

[01:24:01] Aye zero, no's 40. Aye zero, no's 40. The Senate does not concur. We are awaiting House action on Senate Bill 203. Uncontested calendar, House bills on third reading.

[01:24:18] Senator from Eastern Fairfax. Madam President, I move that all the House bills on the third reading on the uncontested calendar, or otherwise known as the deeds docket on pages 17 through 23, House Bill 60 through House Bill 1191, be advanced their final passage in a block after the adoption of any amendments thereto.

[01:24:39] That any senators are going to remove a bill from the block, please do so after the clerk has read the number of the bill. The question is, shall the House bills on the uncontested calendar, third reading, pages 17 through 23, HB 60 through HB 1191, be placed upon their final passage in a block after the adoption of any amendments thereto with the understanding that any senator desiring a bill would be removed from the block will do so after the clerk has read the number of the bill all in favor of the motion we'll say aye those opposed no the ayes have it the

[01:25:15] motion is agreed to the bills are before us in the block the clerk will read the number of the bills has bill 60 reported from the committee for on commerce and labor has bill 190 reported from the committee on commerce and labor and we have a floor substitute the senator from charlottesville president could that bill come out of the block without objection house bill 190 is out of the

[01:25:43] block house bill 220 reported from the committee on commerce and labor has bill seven 275 reported from the committee on commerce and labor has bill 304 reported from the Committee on Commerce and Labor. House Bill 312 reported from the Committee on Commerce and Labor with a substitute. Senator from Charlottesville.

[01:26:14] Madam President, I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 327 reported from the Committee on Commerce and Labor. House Bill 340, reported from the Committee on Commerce and Labor. House Bill 353, reported from the Committee on Commerce and Labor. House Bill 369, reported from the Committee on Commerce and Labor with

[01:26:51] a substitute. Senator from Charlottesville. Madam President, I move that the committee's substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 437, reported from the Committee on Commerce and Labor. House Bill 466, reported from the Committee on Commerce and Labor. Madam President. Senator from Western Prince William. Thank you, Madam President.

[01:27:27] Madam President, may HB 466 please come out of the block. 476. 466. Without objection, House Bill Bill 466 is out of the block. House Bill 476, reported from the Committee on Commerce and Labor with a substitute.

[01:27:51] Senator from Charlottesville. Madam President, I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it.

[01:28:06] The substitute is agreed to. House Bill 484, reported from the Committee on Commerce and Labor with a substitute. from Charlottesville. Madam President, I move that the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. House Bill 562, reported from the Committee on Commerce and Labor, and there is a floor substitute. Senior Senator from Prince William. Madam

[01:28:41] president of that bill come out of the block without objection house bill 562 is out of the block has bill 572 reported from the committee on commerce and labor has bill 618 reported from the committee on commerce and labor has bill 676 reported from the committee on commerce and labor has bill 813 reported from the committee on commerce and labor has bill 828 reported from

[01:29:15] committee on commerce and labor with the substitute the senator from charlottesville president i move that the substitute from the committee on commerce and labor be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of the motion will say aye those opposed no the ayes have it the substitute is agreed to house bill 889 reported from the committee on commerce and labor house bill 902 reported from the committee on commerce and labor House Bill 1191, reported from the Committee on Commerce and Labor.

[01:29:51] The question is, "Shall the House bills in the block pass?" That is, all bills except for House Bill 190 on page 17, House Bill 466 on page 21, House Bill 562 on page 21.

[01:30:15] all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 40 no zero ayes 40 no zero the bills in the block pass returning to house bill 190 there's a floor substitute senator from charlottesville

[01:30:50] Madam Chair, I move that the floor substitute will pass, and I'd like to speak to that. Shall we waive the reading first? I move that we waive the reading to the floor substitute. Thank you, ma'am. The question is, shall the reading of the floor substitute be waived? All in favor of the motion will say aye.

[01:31:06] Those opposed, no. The ayes have it. The reading is waived. Senator from Charlottesville. Now I move adoption of the floor substitute, and I'd like to speak to that just briefly if I can. Senator has the floor. Ladies and gentlemen of the Senate, Madam President, this bill simply creates a work group to study ways to prevent fraud and wire transfer type situations.

[01:31:28] The patron asked for a floor substitute as she has continued to work with interested parties and the Attorney General to come up with the right language. My intent was to try to follow the patron's request and have the floor substitute adopted, but then take the bill by for the day so people can read the floor substitute and get comfortable with the language so I'd ask you to agree to the floor substitute the question is shall the floor substitute be agreed to all in favor of the motion will say aye aye those opposed no the ayes have it the floor substitute is agreed to senator from Charlottesville madam chair I move the bill go by for the day

[01:32:03] please without objection house bill 190 goes by for the day on page 21 house bill 466 senator from Charlottesville apologize madam chair I move that the bill passed this bill is identical to Senate bill 310 that the senator from Tazewell carried and passed this body 36 to 3 I was I would ask that the bill

[01:32:39] pass the question is shall house bill 466 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the Senators voted. Do any Senators desire to change their vote? The Clerk will

[01:33:06] close the roll. Ayes 36, Noes 4. Ayes 36, Noes 4. House Bill 466 passes. On page 21, House Bill 562. Floor substitute. The Senior Senator from Prince William. Thank you, Madam President. I move to waive the reading of the floor substitute. The question is, shall the reading of the floor substitute be waived? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The reading is waves.

[01:33:43] Senator from Prince William. Thank you, Madam President. Move the adoption of the floor substitute and speaking to that motion. Senator has the floor. Thank you, Madam President. So, apologies to the body, but the attorney general's office just asked for a technical change in the bill, and that was to change the words electric utility to electric cooperative. And so, Unfortunately, that occurs in about 15 places, and so it required a full substitute and would move the floor subs adoption.

[01:34:12] The question is, shall the floor substitute be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it. The floor substitute is agreed to. Senator from Prince William. Thank you, Madam President. And I'd move the bill's passage and speak into the motion.

[01:34:27] Senator has the floor. Thank you, Madam President. This is identical to my Senate Bill 487 on Virtual Power Plan Cooperative Territories and it passed this body 39 to nothing and I appreciate the adoption. Thank you, Madam President. The question is, shall House Bill 562 pass?

[01:34:50] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? the clerk will close the roll eyes 39 knows one eyes 39 knows one house bill 562 passes

[01:35:17] regular calendar house bills on third reading house bill 187 a bill relating to city council voting districts reported from the committee on local government the senator from eastern henrico

[01:35:54] thank you madam president i move passage of house bill 187 and speaking to the motion senator has the floor. Madam President and members of the body, we are going to try this again. House Bill 187 by a Delegate Converse Fowler amends the charter for the city of Virginia Beach to reflect the city's transition to a city council consisting solely of single member districts. And Madam President, this vote is a vote that requires 27. Again, I move passage of the bill. The question is, shall House

[01:36:33] Bill 187 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 31, nose 9 house bill 187 passes as bill 1342 a bill relating to which provided a

[01:37:06] charter for the city of Fairfax relating to city elections powers reported from the committee substitute has been adopted by the Senate the senator from Eastern Henrico thank you madam president I move passage of the bill in speaking to that motion senator has the floor thank you madam president just

as As a reminder, House Bill 1342 amends the charter for the city of Fairfax to align it with current law requiring municipal elections to be held at the November election.

[01:37:40] And this is, again, Madam President, another charter bill that requires 27 votes. I move passage of the bill. The question is, shall House Bill 1342 pass all in favor of the motion? Will record their votes aye? Those opposed, no.

[01:37:55] Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 34, noes 6. Ayes 34, noes 6. House Bill 1342 passes.

[01:38:12] House Bill 2, a bill to reduce heating-related cost of living for low-income residents by requiring certain electric utilities to provide energy efficiency upgrades report. Reported from the Committee on Commerce and Labor. The senator from Charlottesville.

[01:38:29] um madam president move the bill passed i'd like to speak to that senator has the floor madam president this bill is just like um the bill from from the junior center from loudon senate bill 72 that passed on this body on a partisan vote it simply requires um phase one and two utilities which are appalachian and dominion to develop plans to cut costs on heating bills for low-income customers i hope you'll pass the question is shall house bill 2

[01:39:03] pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 24 nose 16 eyes 24 nose 16 house bill 2 passes as bill 25 a bill relating to

[01:39:36] railroad safety minimum train crew movement of freight civil penalties reported from the committee on commerce and labor with the substitute madam president i move that the substitute from the committee on commerce and labor be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam president i moved the bill passed i'd like to speak to that senator has the floor the substitute we just passed um makes this bill identical to senate bill 191 the senator from

[01:40:13] norfolk spill and it simply requires two qualified individuals um serve serve as staff for any train or locomotive or light engine used in connection with moving freight Again, I'd hope you pass the bill.

[01:40:31] The question is, shall House Bill 25 pass? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:40:48] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House Bill 25 passes. House Bill 84. a bill relating to electric utilities and licensed suppliers of electricity regional transmission entities annual report reported from the committee on commerce and labor with a substitute senator from charlott'sville madam president i move that the committee substitute be agreed to the question is shall the substitute from the committee on commerce and labor

[01:41:25] be agreed to all in favor of the motion will say aye aye those opposed no the eyes have it the the substitute is agreed to. Senator from Charlottesville. Madam President, I move that the bill pass and I'd like to speak to that. Senator has the floor. Madam President, with that motion to adopt the substitute, we

can form this bill, the Senate Bill 777, which was introduced by the junior senator from Virginia Beach. I move that the bill pass. The question is, shall House Bill 84 pass? All in favor of the motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[01:42:03] Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. House bill 84 passes. House bill 107, a bill relating to underinsured motorist benefits actions against a least defendant, reported from the Committee on Commerce and Labor. The senator from Charlottesville. Madam President, I move that the bill pass and I'd like to speak to that.

[01:42:36] senator has the floor um madam president this bill had one no vote in the house and the senate thank you senator lock for um requiring me to stand up and explain it um this bill has to do with um filing suit um against an underinsured motorist when when the when there's not enough insurance and you have to serve for under insurance you don't have to serve the person who's already been released um i think that's enough of explanation i hope you'll pass the bill the question is shall house bill 107 pass all in favor of that motion will record their votes

[01:43:14] aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 39 nos one ayes 39 nos one house House Bill 107 passes.

[01:43:38] House Bill 284: A bill relating to Electric Utilities, High Energy Demand Customers, State Corporation Commission to establish Electric Demand Flexibility Programs report. Reporting from the Committee on Commerce and Labor with a substitute.

[01:43:56] Senator from Charlottesville. Madam President, I move the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? the motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, I move the bill pass in speaking to that motion. Senator has the floor. Madam President, with the substitute this bill simply directs Appalachian and Dominion to petition the State Corporation Commission for approval of voluntary demand flexibility flexibility program applicable to high energy demand customers by January 15th

[01:44:31] of next year. The SEC is required to issue a final order on the petitions by November 30 of next year. The substitute also directs cooperatives serving high energy demand customers, i.e. data centers, to establish a voluntary demand flexibility program by January 1st, 2029. Again, I hope the bill will pass. The question is, shall House Bill 284 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[01:45:00] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 24, noes 16. Ayes 24, noes 16.

[01:45:17] House Bill 284 passes. House Bill 434, a bill to direct certain electric utilities to petition the State Corporation Commission for approval of electric grid utilization metrics reported from the Committee on Commerce and Labor with a substitute.

[01:45:36] Senator from Charlottesville. Madam President, move the substitute be agreed to. The question is, Shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that

motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, I move the bill pass.

[01:45:51] I'd like to speak to that. Senator has the floor. Madam President, with the substitute, this basically conforms the bill to Senate Bill 621, which came from the junior senator of Loudoun. And unlike the last bill, which was voluntary, this one requires dominion in Appalachian action to petition the State Corporation Commission by November of this year for approval of electric grid utilization metrics and the directs the Commission to report by July 1 of 2027 so the whole idea is to basically improve the way we

[01:46:25] can analyze the use of electric power I hope the bill will pass the question is shall House bill 434 pass all in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. House bill 434 passes. House bill 625, a bill relating to health insurance limit on

[01:47:00] cost-sharing payments for prescription drugs under certain plans. Reported from the committee on commerce and labor with the substitute the senator from charlottesville madam chair i move the substitute be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of the motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam chair i move that the bill passed and i'd like to speak to that senator has the floor madam chair with the substitute this basically conforms the bill to 161 which came from the senior senator from loudon county it set it

[01:47:37] um places limits on costs sharing payments for prescription drugs the question is shall house bill 625 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote The clerk will close the roll.

[01:48:05] Ayes 37, noes 3. Ayes 37, noes 3. House Bill 625 passes. House Bill 628, a bill relating to electric utilities, renewable energy, portfolio standard program requirements, net power purchase agreements.

[01:48:26] Report it from the Committee on Commerce and Labor with a substitute. Senator from Charlottesville. Madam President, I move that the Committee's substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Those opposed, no.

[01:48:42] The ayes have it. The substitute is agreed to. Senator from Charlottesville. Madam President, move the bill pass in speaking to that. Senator has the floor. Madam President, with the substitute, this bill is basically conformed to Senate Bill 675 that came from the Senator from Western Henrico, except it removes a third enactment calls.

[01:49:03] The bill at this point increases the amount of solar on rooftops and previously disturbed sites requiring more third-party projects for small-scale solar as opposed to utility projects and allows power purchase agreements for all currently owned, currently for all if asked.

[01:49:21] The bill also delays the in-state requirement of 2027 to hedge against risks that our offshore wind project is further delayed to protect rate payers. I hope the bill will pass. The question is, shall House Bill 628 pass?

[01:49:39] All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:49:56] Ayes 22, noes 18. Ayes 22, noes 18. House Bill 628 passes. House Bill 770, a bill relating to public utilities, water and sewage companies discounted rates for low-income customers reported from the Committee on Commerce and Labor. Senator from Charlottesville. Madam President, I move the bill passed. I'd like to speak to that. Senator has the floor. Madam President, this this bill is substantially in the same shape as Senate Bill 770 and I think is exactly not why I'm sorry Senate Bill 650 from

[01:50:32] the senior senator from Fairfax. The amendments we made in the committee or the bill we adopted in that the amendments that have been adopted to his bill have conformed it to this my perspective it creates allows water utilities to provide programs for low-income customers doesn't require anybody to do anything I hope you'll pass vote for the bill the question is shall House bill 770 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do

[01:51:09] any senators desire to change their vote. The clerk will close the roll. Ayes 24, noes 16. Ayes 24, noes 16. House bill 770 passes. House bill 807, a bill relating to electric utilities shared solar programs, phase 2 utility, reported from the Committee on Commerce and Labor with a substitute. Senator from Charlottesville.

[01:51:33] Madam President, I move that the substitute to be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of motion will say aye those opposed no the ayes have it the substitute is agreed to senator from charlottesville madam president with the substitute we've basically conformed this bill to a bill from the senator from eastern fairfax senate bill 254 that passed this body with 24 votes it relates to shared solar programs within the dominion territory again i hope that you vote for the bill the question is shall house bill 807 pass all in favor of the motion will record their

[01:52:09] votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will the clerk will close the roll eyes 22 nose 18. ayes 22 nose 18 house bill 807 passes house bill 809 a bill relating to electric utilities shared solar programs phase 2 utilities reported from the committee on commerce and labor senator from charlottesville 809 um madam president i moved the bill passed i'd like to

[01:52:47] speak to that senator has the floor madam president this bill deals with phase one utilities and the phase one utility is of course appalachian it's a shared solar bill that relates to that territory it's identical to senate bill 55 which is from the senator from eastern fairfax the senator from eastern eastern fairfax and the delegate from fairfax mr solomon are determined to create shared solar programs throughout the commonwealth and i hope you'll go along with that their scheme the question is shall house bill 809 pass all in favor of the motion will record

[01:53:23] their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 22 nose 18 ayes 22 nose 18 house bill 809 passes house bill 921 a bill relating to electric utilities license retail suppliers renewable portfolio standard requirements reported from the committee on commerce and labor

[01:54:00] senator from charlottesville madam president um i moved that the bill passed i'd like to speak to that senator has the floor madam president i want to thanks first the senior senator from virginia beach for requiring me to stand up and speak on this bill because it passed in both chambers with with every other every other vote in fact this bill is identical to one that came from the senator from roanoke that also passed this chamber with no vote with no negative votes it permits it doesn't require anybody to do anything it permits individual non-residential

[01:54:33] retail customers of electric energy um whose non-incidental peak demand exceeded five megawatts during the most recent calendar year to purchase energy electric energy from licensed supplier within the commonwealth i hope you'll vote for the bill the question is shall house bill 921 pass all in favor of that motion will record their votes aye those opposed no are the senators ready

[01:55:02] to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 36, noes 4. Ayes 36, noes 4. House Bill 921 passes. Madam President. Senior Senator from Virginia Beach. Having been voting on the prevailing side in which we just passed Senate Bill 921, which is the rec shopping bill, I wanted to, I would like to have us reconsider that vote

[01:55:40] in which we just passed it, so some folks may change their vote. Thank you very much. The question is, shall the vote by which House Bill 921 was passed be reconsidered? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero. The motion is agreed to. Senator from Charlottesville.

[01:56:21] that the bill passed, and I don't like to speak to, I don't need to speak to this. The question is, shall House Bill 921 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[01:56:38] Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero. House Bill 921 passes. As Bill 1062, a bill relating to electric utilities, pilot program for electric energy conservation, generation, and storage.

[01:57:05] Reported from the Committee on Commerce and Labor. The Senator from Charlottesville. I think there's a substitute for that. And there is a substitute. I would move the substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[01:57:22] All in favor of the motion will say aye. Those opposed, no. The ayes have it. the substitute is agreed to. Senator from Charlottesville. Madam President, I move that the bill passed and I'd like to speak to that. Senator has the floor. Madam President, with the substitute, we basically formed this bill to Senate Bill 327 that came from the Senator from Western Fairfax. We've made a couple of other changes. The amounts on lines 21 and 28 that Appalachian and Dominion spend on this pilot project have been changed, changed from no less than 5 million and no less than 20 million to they're going to spend 5 million they're going to spend 20 million that that that's what they're going to spend on these pilot projects

[01:58:01] for electric energy conservation um solar energy generation and energy storage resources for low income elderly and disabled individuals help these folks out please and vote for this bill the question is shall house bill 1062 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21,

[01:58:34] noes 19. Ayes 21, noes 19. House Bill 1062 passes. House Bill 1065, a bill to direct certain electric utilities to undertake comprehensive assessments and establish pilot programs related to surplus interconnection service report.

[01:58:53] Reported from the Committee on Commerce and Labor. Senator from Charlottesville. I move that the bill to pass, I'd like to speak to that. Senator has the floor. Madam President, this bill is identical to Senate Bill 508, also from the Senator from Western Fairfax.

[01:59:08] It directs Appalachian and Dominion to develop, to go through a comprehensive assessment of available interconnection capacity for existing and planned intermittent electric generation facilities located in Virginia. The bill directs the utilities to establish pilot programs for energy storage resources and solar generation facilities that utilize surplus interconnection services.

[01:59:34] It passed the Senate with 23 votes, and I hope you'll vote for the bill. The question is, shall House Bill 1065 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[01:59:50] Do any senators desire to change their vote? The clerk will close the roll. I ask 22, no, 17. And Rule 36-1. Ayes 22, noes 17, Rule 36-1, House Bill 1065 passes.

[02:00:09] House Bill 1102, a bill relating to Renewable Energy Portfolio Standard Program, Geothermal Heating and Cooling Systems report. Report it from the Committee on Commerce and Labor with a substitute.

[02:00:25] Senator from Charlottesville. Madam President, I move that the Committee of Substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Charlottesville.

[02:00:41] Chair, Madam President, I move the bill to pass. Senator has the floor. Madam President, with the substitute, we conform this bill to Senate Bill 252, which came from the Senator from Eastern Fairfax. You will recall that for several years, he's been working to get geothermal heating included in our renewable portfolio standard language legislation, and that's what this bill does.

[02:01:08] We passed this legislation, and it was a Senate bill with 25 votes, and I hope you'll agree to it. The question is, shall House Bill 1102 pass? All in favor of the motion will record their votes, aye. opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 24,

[02:01:37] noes 16. Ayes 24, noes 16. House bill 1102 passes. House bill 1225, a bill relating to electric utilities, transportation, electrification, electric vehicle, fast charging stations reported for the Committee on Commerce and Labor. Senator from Charlottesville. Madam President move the bill pass and I'd like to speak to that. Senator has the floor. Madam President this bill is identical to Senate bill 47 which came from the senator from Northern Fairfax. It passed this

[02:02:16] body with 38 votes. It simply allows Dominion and Appalachian to develop resource or develop fast charging stations. I guess it mostly gas stations across the commonwealth the question is shall house bill 1225 pass all in favor of that motion will record their votes aye those opposed no are the senators ready

to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 37 nose 3 eyes 37 nose 3 house

[02:02:55] bill 1225 passes as bill 1487 a bill relating to pilot program for underground transmission lines qualifying projects levy report reported from the committee on commerce and labor with a substitute senator from charlottesville madam president i move that the substitute from the committee on commerce and labor be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of the motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from charlottes madam president i move

[02:03:33] that the bill passed and speaking to that senator has the floor um with the the substitute we've conformed this bill to senate senate bill 827 that came from the junior senator from loudon and it relates to a pilot project for undergrounding and that probably will it doesn't identify exactly where that will be except it will be in northern virginia and the local government's going to be required if it if it goes forward to contribute to getting it done so I hope and we passed this this vote bill with 26 votes so my hope is you'll pass the

[02:04:07] bill the question is shall House bill 1487 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the Clerk will close the roll.

[02:04:31] Ayes 27, noes 13. Ayes 27, noes 13. House Bill 1487 passes. Having completed the deeds docket, the Senate will say hooray. Hooray. Yay.

[02:04:49] Uncontested calendar. House Bill's on second reading. The Senator from Eastern Fairfax. Madam President, I move that all the House Bill's on second reading and the uncontested in regular calendars, pages 30 through 56, House Bill 54 through 1525 that the rules be suspended in the second constitutional reading of the titles be dispensed with. The question is shall the rules be suspended in the second reading of the titles of the house bills on the uncontested and regular calendars pages 30 through 56 House Bill 54 through House Bill 1525 be dispensed with. All in favor of that motion will record their

[02:05:27] votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 40 noes 0. Ayes 40 noes 0. The reading of the titles is dispensed with. Senator from Eastern Fairfax. Madam President I move that all said house bills be passed by for the day. The question is shall the house bills on the uncontested and regular calendars now on their third reading go by for the day.

[02:05:59] all in favor of that motion will say aye those opposed no the ayes have it the bills will go by for the day page 56 regular calendar Senate bill on second reading Senate bill 30 senator from Portsmouth madam president can Senate

[02:06:38] bill 30 go back temporarily without objection Senate bill 30 goes by temporarily memorial resolutions senator from Eastern Fairfax madam Mr. President, I move the memorial resolutions on pages 57 through 59, H.J.R. 127 through S.R. 68, be considered in a block in the usual manner, waiving the reading of the resolutions thereof, with the understanding that a senator desiring to move a resolution from the block will do so after the clerk has read the number of resolutions.

[02:07:14] The question is, shall the memorial resolutions on pages 57 through 59, H.J.R. 127 through S.R. 68, be considered in the block in the usual manner, waiving the reading of the resolutions thereof, with

the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the title of the resolution.

[02:07:39] All in favor of the motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The resolutions are before us in the block. The clerk will read the titles of the memorial resolutions. House Joint Resolutions 127, celebrating the life of Jaylene Martinez.

[02:08:00] House Joint Resolution 136, celebrating the life of John Victor Mazza, Jr. House Joint Resolution 139, celebrating the life of Command Sergeant Major Mitchell L. Rubenstein, USA, retired.

[02:08:19] House Joint Resolution 140, celebrating the life of J. Hamilton Lambert. House Joint Resolution 141, celebrating the life of Vivian Marguerite Kalin. House Joint Resolution 145, celebrating the life of Purcell G. Bailey.

[02:08:43] House Joint Resolution 145, celebrating the life of Donald G. Vance. House Joint Resolution 149, celebrating the life of Vernon Ray Jones. House Joint Resolution 153, celebrating the life of Sincere B. Alla.

[02:09:05] House Joint Resolution 155, celebrating the life of James Hartman III. Senate Joint Resolution 116, celebrating the life of Harlan Ray Beckley.

[02:09:21] Senate Joint Resolution 118, celebrating the life of Martin Gerald Farber. Madam President. Senator from King George. Could that resolution come out of the block and bye for the day, please? Without objection, SJR 118 is out of the block and bye for the day.

[02:09:46] Senate Joint Resolution 119, celebrating the life of Edward Douglas Harris. Senate Joint Resolution 121, celebrating the life of the Honorable Barney Keith Day. Senator from Charlottesville.

[02:10:03] Come out of the block. Without objection, SJR 121 is out of the block. Senate Joint Resolution 127, celebrating the life of August Bryant Bullock. Senate Joint Resolution 128, celebrating the life of James Woodrow McLaughlin.

[02:10:25] Senate Joint Resolution 130, celebrating the life of Eddie L. Radden, Jr. Senate Joint, Senate Resolution 54, celebrating the life of Clifford H. Walz, Jr. Senate Resolution 56, celebrating the life of Joseph Williamson Luter III.

[02:10:49] Senate Resolution 59, celebrating the life of James Paul Council III. Senate Resolution 68, celebrating the life of Wilma Jean Keane Ward Compton.

[02:11:05] The resolutions will be agreed to in the usual manner, that is, all resolutions except for SJR 118 and SJR 121 on page 58. All those in favor of agreeing to the memorial resolutions, please rise.

[02:11:31] The resolutions are agreed to. Senate Joint Resolution 121. Senator from Charlottesville. Resolution, I'd like to speak to it, please.

[02:11:48] Senator has the floor. Barney Day was elected to the House of Delegates in a special election in January of 1997. He replaced Roscoe Reynolds when Roscoe would come to the Senate replacing Virgil Gude, when Virgil Gude moved to Congress to replace L.F. Payne.

[02:12:09] Barney represented that area of Southside and Patrick County and was re-elected in 97, 99. and then in 2001 a bunch of us were put together in lots of districts that what you know you everybody knows the way that works but Barney ended up in a district with Tommy Jackson and Ward Armstrong and he

didn't run for re-election he got sick shortly thereafter and he the last bunch of years of his life were he struggled sometimes physically but mentally and I haven't hadn't seen him in years but mentally he was he was sharp as attack

[02:12:47] and back in those days in the Senate Madison Marie from Charlesville was a storyteller and he he he could come up with it with stories for just about any subject to the relate and make you feel stupid or make you feel small that was that was Barney Day when he came to the house he would he would he was one of the sharpest guys he wrote and he thought all the time and and also some of you have heard me say talk about this place when it used to be fun when we used to have real

[02:13:23] fun around here those were primarily days when a guy like Barney Dave was here because I think about Barney I think about all the good times we had both on the floor and off he was he was unbelievable guy he was smart he was well-spoken he would get up and ask interrogate people he wasn't lawyer he ran a store he ran a store and and I think in Patrick Springs maybe but he he was a he was a county administrator in Patrick County for a while he was North Carolina he went to Chapel Hill and I think went to Duke for

[02:13:59] graduate school so he was educated he was bright he was well-spoken he was a unbelievable writer unbelievable thinker he would make you he would question everything about what you were doing and make you think make he made everybody he knew a better legislator and a better person you know he is exact the kind of person that everybody needs to have in their life to kind of lift them up and make them feel better about themselves and after he left this place he continued to live that way you know you'd got to stop out to see him his up off the Blue Ridge Parkway he was he was proud of everything about his place

[02:14:38] He was proud of his pond, proud of his, I remember the last time I was, I spent much time with him, how proud he was of his new bathtub. He was just some kind of fella, one of the people I'm glad I got to serve with.

[02:15:01] SJR 121 will be agreed to in the usual manner. All those in favor of agreeing to the memorial resolution, please rise. The resolution is agreed to.

[02:15:22] Senator from Eastern Fairfax. Madam President, I move the commending resolutions on pages 59 through 63, HJR 122 to SR 69 be considered in a block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block shall do so after the clerk has read the number of the resolution.

[02:15:41] The question is, shall the commending resolutions on pages 59 through 63, H.J.R. 122 through S.R. 69 be considered in a block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring a resolution be removed from the block will do so after the clerk has read the number of the resolution. All in favor of that motion will say aye. Those opposed, no. The ayes have it.

[02:16:09] The motion is agreed to. The resolutions are before us in the block. The clerk will read the number of the resolutions. House Joint Resolutions 122, 123, 134, 137, 138, 142, 143, 146, 147, 148, 150, 152, 154, 160.

[02:16:40] Senate Joint Resolutions 106, 117, 120, 122, 123, 124, 125, 126.

[02:16:56] Madam President. Senator from King George. Could Senate Joint Resolution 125 come out of the block and by for the day? Without objection, Senate Joint Resolution 125 is out of the block and by for the day.

[02:17:13] 29, 131, Senate Resolution 55, 57, 58, 60, 61, 62, 63, 64, 65, 66, 67, 69.

[02:17:35] The question is, shall the resolutions be agreed to, that is, all resolutions except for Senate Joint Resolution 125 on page 61 all in favor of agreeing to the resolutions will say aye those opposed no the ayes have it the resolutions are agreed to senator from Eastern Fairfax thank you madam president I would move

[02:18:09] that we I guess be at ease or recess for third or 15 minutes speaking of that motion? Senator has the floor. Thank you, Madam President. Ladies and gentlemen, we need a few minutes to sort of get organized here before we take up the budget. I think, I know at least the Republican caucus needs to meet. I think, I'm not sure if we're going to meet over on this side.

[02:18:28] We'll let everybody know, but we need 15 minutes to get ready and get the Senate staff out here to take care of the budget. So we ask that we get at ease. 15 minutes. The Senate will be in recess

[02:18:37] for 15 minutes. Senate will return to order. Turning to page 56 of your calendar, Senate Bill 30,

[03:17:58] a bill for all appropriations of the budget submitted by the Governor of Virginia and to provide a portion of the revenues for the two years ending respectively on the 30th day of June, 2027 and the 30th day of June, 2028.

[03:18:22] The Senator from Eastern Fairfax. Madam President, I move that we suspend the rules and grant the privileges of the floor to the Senate Finance Committee staff so we can have our budget conversation.

[03:18:39] The question is, "Shall the rules be suspended and the privileges of the floor be granted to the Senate Finance Committee staff? All in favor of the motion will record their votes, aye, those opposed, no. Are the senators ready to vote? Have all the senators voted?

[03:18:55] Do any senators desire to change their vote?" The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The rules are suspended.

[03:19:06] The privileges of the floor are granted.

[03:20:04] recognizes the senator from portsmouth madam president madam president i move now i would like to explain the procedure first for the day senator has the floor thank you the clerk will announce the list of the items taken out of the block in three blocks and they're on your desk we will then take up the uncontested committee amendments in a block then we will consider the

[03:20:38] out-of-block committee amendments. We'll take up block number one and a block, block number two and a block, and block number three, one by one. Senate Finance and Appropriations staff are here to assist with answering any questions, but before we take up Senate Bill 30, I would like to make a few comments. On Sunday, I gave some highlights on the committee's adopted budget. I will also do that quickly again today. Since chairing finance, I have been focused on

[03:21:11] providing affordability and long-term prosperity to hard working Virginias. We have collaboratively provided immediate relief, lowered taxes, and invested in our future through education

and child care. My responsibility is to look out for all Virginias, not just today, but for the future as well through responsible budgeting that reflects and delivers on our shared values.

[03:21:36] This committee has delivered a budget focused on affordability while still maintaining structural balance. And when I talk about affordability, it isn't just short-term actions. It also includes those long-term actions related to education and training so that our citizens can have a more prosperous future. Therefore, in the areas of education, we have additional supports for our children, most at risk of falling behind while providing flexibility to our educators and school divisions. Budget actions in K-12 include additional raises for teachers'

[03:22:13] salaries, at-risk and special education funding, and a pilot to match employers and private dollars for childcare slots. In higher education, there is ongoing support for operations, financial aid, and workforce programs.

[03:22:31] To provide immediate relief for all hard-working Virginians, we are once again delivering a tax rebate that will be issued around October 15. will be sent by check or direct deposits with $100 for individual filers and $200 for married couples. Although we are not prepared for major progressive tax reform, we are taking a step toward that goal through increasing the standard deduction by an additional $450 for individual

[03:23:02] filers, bringing it to $9,200 and by $900 for married filers, bringing it to $18,400. By By exempting more income from taxation, Virginians get immediate relief in their paychecks.

[03:23:20] Tax relief alone is not enough if hard-working Virginians continue to struggle to afford the essentials. Too often, families must choose between health insurance coverage or paying their rent, child care, or food. Our budget addresses these critical issues by providing funding related to the expiration of the enhanced ACA tax credits to help individuals afford health insurance.

[03:23:47] We also invest in housing by supporting additional funding for the Housing Trust Fund and eviction prevention diversion. These investments reflect our commitment to affordability across the Commonwealth, one that requires us to examine not only how we spend, but how we generate funding for our priorities.

[03:24:09] Governor Youngkin's outgoing budget had significant structural deficiencies and did not plan for the entire increased cost to Virginia from federal actions in HR1, largely the new cost share for food assistance.

[03:24:26] We thought long on how to handle the structural issue without burdening everyday Virginians, and that led to the decision to expire the data center sales and use tax exemptions on January 1, 2027, which Senator Rome, incidentally, has done a lot.

[03:24:45] In the most recent fiscal year, data centers benefited from $32.2 billion in tax-free computer equipment purchases. This growth will continue with artificial intelligence investments. As data centers have expanded, we have all become concerned about subsidizing the energy demands and their environmental impact.

[03:25:08] As I said on Sunday, we're asking data centers just to pay their fair share in sales tax to help deliver our core services, education, transportation, and social services. I keep getting asked in my position, or if my position is firm, well, let me state that my position is as strong as high tinsel steel.

[03:25:29] Supporting Virginians require investing in the infrastructure that supports them, our schools, utilities, and transportation. By allowing the data center sales and use tax exemptions to expire, we can direct nearly $300 million towards all modes of transportation without additional fees or tolls. Additionally, with one-time investments in water infrastructure, we can ensure rate payers are relieved of the pressures to meet important environmental goals. As I said on Sunday, our

[03:26:03] budget is responsive to the needs of every region and truly invests in our best assets, our people. Even though policy disagreements often happen, this body takes the lead on being good at fiscal stewardship, and Virginians should be proud.

[03:26:21] And I ask that the Senate to support the amendments to Senate Bill 30. Sheets.

[03:26:40] These are the three groups of bills that are out of the block. So we will first take up the uncontested block.

[03:27:04] Senator from Portsmouth. Madam President, Senate Bill 30 is a wonderful and structurally balanced budget that supports a strong Virginia. Madame President, I move the uncontested committee amendments be agreed to in a block. The question is, shall the uncontested committee amendments to Senate Bill 30 be agreed

[03:27:41] to in a block? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bills, the budget amendments are agreed to in a block. Madam President.

[03:27:59] Senator from Portsmouth. I move that the uncontested committee amendments. I got to let you do yours. Block one.

[03:28:17] The uncontested, the out of block updated list on your green sheets. Yes, there's an updated green sheet. So the first one is page one, block one, sorry.

[03:28:33] page nine okay let me get my signal straight over here it was simpler reading every one of them

[03:28:56] okay page one block one we're going to take them in a block my mic keeps going off madam president i move the block one we agreed to will the clerk read the items by number you don't need to okay okay then we'll move them in a block they change the signals every five minutes okay in a block Yes, ma'am.

[03:29:35] Page 1, Block 1. Yes. The question is, shall the budget amendments to Senate Bill 30 in Block 1 be agreed to? All in favor of the motion will say aye.

[03:29:53] Aye. Those opposed, no. The ayes have it. The Block 1 amendments are agreed to. Page 2, Block 2. Senator from Portsmouth.

[03:30:08] Madam President, I move that Block 2 be agreed to. Will the clerk read the item numbers? New instructions. Item 125, number 8.

[03:30:24] Item 161, number 3. Item 275, number 1. Item 390, number 3. Item 469, number 1.

[03:30:42] And item 414, 4-14, number 3. The question is, Senator from Hanover. Madam President, I would ask that this block be a recorded vote and I'd ask my colleagues to vote in the affirmative.

[03:31:06] Thank you, Senator. This will be a recorded vote. The question is, shall the budget amendments to Senate Bill 30 in block two pass? All in favor of that motion will record their votes aye, those opposed

no.

[03:31:23] Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 40, Noes 0. Ayes 40, Noes 0.

[03:31:40] Budget amendments in Block 2, pass. In Block 3, we will take up each item individually. Madam President. Senator from Portsmouth.

[03:32:01] Page 3. Yes. Item 1, Number 3S. from Eastern Fairfax. Thank you, Madam President. I would move that committee amendment number one 3s pass on page three and speak that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen of the Senate, item number one 3s is an amendment that provides for a pay increase for state legislators to around

[03:32:34] $50,000 beginning January of 2028. The reason it says January 2028 is because under the Constitution of Virginia, salary increases are not allowed to take effect until after there has been an election for which the legislature voted on it. The last time that the salary was increased for legislators was 1988. And if you take a salary of $18,000 and you put it in the Bureau of Labor Statistics inflation calculator for January or July, I think, of 1988, and you put in today's

[03:33:12] date. I just did this a minute ago. It says that in time, value, money, inflation, etc., that comes out to $49,405.37. So if we had kept up for inflation, that's what the salary for state legislators would be today. I'll just note that, Madam President, that I believe that the current state of our salary inhibits a lot of folks from being able to serve and offer their services to legislature it creates a barrier to people participating it's I think it also is a side of inflation I think this job as all of us know if you want to do

[03:33:51] it right is effectively a full-time job it's not a part-time job and I think we want people to treat it that way and madam president I'd hope we could adopt this amendment so that we could have our have these salaries that keep up with inflation, and at least have a conversation with the House of Delegates about it.

[03:34:08] The chair recognizes the senator from Rockingham. Madam President, I want to speak to this amendment. Senator has the floor. Madam President, it is with hesitation that I stand to speak on this.

[03:34:29] I appreciate the words from my friend, the senator from Eastern Fairfax, and I do acknowledge that it has been a long time since legislative salaries have been addressed. But I submit that there is a right way and a wrong way to go about this process.

[03:34:52] You know, if we really wanted to address salaries, this is something that should have been done year after year after year. Our Constitution recognizes the fact that we need to take this before the voters, before these salary increases go into effect and it will go before the voters I think the voters would probably not take a dim view of a modest and

[03:35:28] restrained and measured increase in legislative salaries but as I look at this budget and I look at the salary increases that we are providing to state employees and the teachers and the focus during the course of this legislative session on affordability I find it very difficult indeed impossible to vote for a salary increase for members of the General Assembly so disproportionate to

[03:36:04] the salary increases that we are providing to other state employees we're providing a 2% salary increase to teachers. We're providing a 300% salary increase to members of the General Assembly. I can't do that. You know, over the course of the years that I've served here, I have not witnessed any shortage

[03:36:38] of people desirous of running for the General Assembly. Indeed, I've witnessed robust competition and millions of dollars being spent to pursue these seats and if this was a 2% increase or even a 5% increase or a 10% increase I think we would be on different ground but to increase legislative salaries by

[03:37:13] 300 percent in a time in which we are offering state employees a two percent raise is in my view indefensible and i will not vote for this senator from eastern fairfax thank you mayor president nobody else desires to speak speaking to the bill senator has the floor the amendment um thank you president there's a couple other points i want to wrap up um make clear first of all um this change would not take effect until january of 2028 after the next election cycle and

[03:37:48] But in a lot of ways, doing it this way is more transparent than sort of deferring to some third party and letting some third party make the decision instead of us making the decision ourselves, which I think is what most voters expect us to do. And the other thing I just want to say is if you look at our neighboring states of a similar size to us, the state of New Jersey, which is slightly larger than Virginia, their salary for legislators is $49,000 a year.

[03:38:17] Washington which is a little bit smaller than Virginia they're sick their legislative salary is sixty one thousand six hundred ten dollars a year state of Maryland right next door they're about thinking about two or three congressional districts smaller than we are their legislative salaries are fifty five thousand five hundred twenty six dollars a year we are at a step with peer states as well other states have even states of part-time legislatures which I know Maryland does. And so, Madam President, I think this is the best way to do this transparently. Keeps us up with our peer states. It'll allow the people to serve. It'll

[03:38:56] make this job more representative of the Commonwealth of Virginia. And I think if you go ask most of your constituents, you know, when I go to town halls or when I go to these schools and I say to kids, you know, how much money do you think I make as a state senator? They go, Well, you must make $100,000 a year.

[03:39:13] Everybody thinks we make six figures in this job, probably because of what Congress pays themselves. But we get way more work done than Congress does, and they get paid $180,000 a year, ten times what we do, which is crazy. But, Madam President, I think most voters already think we make well in excess of this.

[03:39:33] And this just keeps us up with inflation for the last 30 years. And we need to update this number. We haven't touched this since I was a junior in high school. And I've been practicing law for 28 years now. This is way overdue, and I'd hope we could adopt it.

[03:39:53] The question is, shall Budget Amendment 1, number 3S, be agreed to? All in favor of the motion will say aye. Those opposed, no. The chair is not certain this will be a recorded vote.

[03:40:10] The question is, shall Budget Amendment 1, number 3S, pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[03:40:26] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, Nose 19. Ayes 21, Nose 19. Budget Amendment 1, Number 3S, passes.

[03:40:43] Item 77, Number 1S. Senator from Eastern Fairfax. Thank you, Madam President. I move that Committee Amendment Number 77, 1S, pass on page 24, and speaking to that motion.

[03:40:58] Senator has the floor. Thank you, Madam President. Ladies and gentlemen of the Senate, item 77-1-S provides $100,000 per year, basically, to allow us to return, to implement Senate Bill 57, which, if I'm not mistaken, was the senior senator from Mariko's bill, requiring the Department of Elections to return us to the Electronic Registration Information Center, otherwise known as ERIC.

[03:41:27] ERIC is a non-profit, non-partisan membership organization created and comprised of election officials around the Commonwealth and I was a little surprised to see this one pulled out you know because the original decision to join Eric if I'm not mistaken was by Governor Bob McDonald I think I was here at the time Governor McDonald thought this was a good idea because it allow states to pool their resources to save money and come up with more accurate voter lists and so it's really astonishing to me that that Eric has become a some kind of a partisan

[03:42:03] issue, but I guess a couple years ago, some like QAnon rumor or something started circulating on the internet about it, and then all of a sudden it became a partisan thing, which caused the former governor to ask us to leave. But this tool helps election officials maintain more accurate voter rolls, detect possible illegal voting, allows us to get people off our rolls when they move 25 other states or members. And so if you don't want accurate voter rolls, I guess you can vote against this. Otherwise

[03:42:37] you want to save some money, make sure people who are not on the rolls are not voting, vote for this amendment. The question is, shall item 77, number 1S, be agreed to? All in favor of the motion will say aye. Those opposed, no. The ayes have it. Item 70, seeing at least eight hands, this will be a recorded vote the question is shall item 77 number 1s be agreed to all in favor of the motion will

[03:43:16] record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 21 knows 19 eyes 21 knows 19 item 77 number 1s is agreed to item 77 number 3s the senator from Eastern Fairfax thank you madam president I move the committee member

[03:43:52] number 77 number 3 s pass and speaking of the motion senator has the floor all right item 77 number 3 s provides six hundred and fifteen thousand dollars to the out of the budget in one year to advertise and provide information to the voters on the three constitutional amendments that are on the ballot that's the right to vote the one that gets Jim Crow at our Constitution the right uh the one that removes the gay marriage ban from our constitution and gives everybody the

[03:44:29] right to vote and the constitutional amendment that would codify effectively roe v wade get the right to contraception for the most part into our budget roughly speaking reproductive freedom um we have to advertise these constitutional amendments and tell voters about them that's what you have to do when you have a constitutional amendment they've already been passed by both bodies. This is something we have to do to comply with the law, to put it before the voters. That's all the amendment does. I would hope we could pass this funding so that the voters can find out what

[03:45:05] they're going to vote on. The question is, shall item 77 number 3S be agreed to? All in favor of the motion will say aye those opposed no the eyes have it item 77 number 3s is agreed to seeing at least eight hands this will be a recorded vote the question is shall item 77 number 3s pass all in favor of the motion will record their votes aye those opposed no

[03:45:41] are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 23, noes 17. Ayes 23, noes 17. Item 77 number 3S is agreed to. Item

109 number 3S. Senator from Eastern Fairfax. Thank you Madam President. I move that committee amendment number 109 number 3S pass and speak of the motion. Senator has the floor. I guess some people really don't like the work we did in the general government subcommittee,

[03:46:16] i guess appear a lot um madam president the this amendment has to do with the solar unconnected grant fund uh this was a this is basically to fund provide a little two million dollars a little tiny bit of money out of the general fund to fund this new grant fund that we created this this bill was actually a recommendation of the commission on electrical utility regulation we passed the bill last year was vetoed by governor youngkin we've now passed it again and basically what this does is one of the things we heard from our localities who would love to put solar on their schools

[03:46:52] is that the cost to interconnect their school with the grid if they put solar on it is very very very expensive and so the idea here is to try to provide a little bit of money to make it more cost effective for our schools especially our schools in our rural areas who want to save money on electricity so they can spend their money educating kids instead of paying the power company in some of these parts of the state where power bills are really high we're trying to help these school systems save money and this grant fund will help them do that I would hope we could vote to provide this small two

[03:47:30] million dollars amount of money to help these localities hook up their schools to solar so they can use more than money to educate children the question is shall item 109 number 3s be agreed to all in favor of the motion will say aye those opposed no the ayes have it item 109 number 3s is agreed to item 125 number 5s

[03:48:03] senator from hampton thank you madam president i move the number 125 number 5s pass and speaking to that senator has the floor uh number one 125 number 5s uh is at risk add-on this is an initiative that distributes aid to school divisions based on their concentration of students eligible for free lunch. I certainly would hope that we support efforts to remediate educational gaps for at-risk students so that they may be

[03:48:38] able to learn, Madam President. So again, I move that 125 number 5S would pass. The question is, shall item 125 number 5S be agreed to? All in favor of the motion will say aye those opposed no the ayes have it the item 125 number 5s is agreed to item 125 number 6s senator from Hampton madam president I moved in

[03:49:12] number 125 number 6s pass and speaking to that senator has the floor 125 number 6s allows uh revenues received in the second year to be applied to uh infrastructure and operations per pupil uh for public schools from lottery proceeds fund i would hope that we support k through 12 education initiatives with available resources again i move that 125 number 6s pass the question is shall item 125 number 6s be agreed to all in favor of the motion we'll say aye

[03:49:51] those opposed no the ayes have it item 125 number 6s is agreed to item 243 number 3s senator from hampton thank you madam president i moved it 243 number 3s pass and speaking to that senator has the floor uh madam president this amendment removes language related to a tuition gap uh that was included in the introduced budget um and i would hope that we allow institutions of higher education to provide their revenue to support their needs and to

[03:50:28] support their operation and equity and quality education at those institutions as they see fit and as they deem appropriate and with that explanation madam president I move to 243 number 3s pass

senator from Rockingham madam president speaking this item senator has the floor madam president this item removes the tuition the cap on tuition increases for higher education in Virginia we ended the last fiscal year with a substantial budget surplus we've

[03:51:06] adopted a budget that generates approximately three billion dollars of additional revenue we have been told from down the street or upstairs that the byword of this session is supposed to be affordability however I find it difficult to reconcile removing the cap on tuition increases with the affordability theme I would really hope that we would reject this and keep a tuition cap so families have that assurance of access to higher education

[03:51:43] the Commonwealth of Virginia thank you the question is shall item 243 number 3s pass all in favor of the motion we'll say aye those opposed no the chair is not certain this will be a recorded vote the question is shall item 243 number 3s be agreed to all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the

[03:52:17] senators voted do any senators desire to change their vote the clerk will close the roll eyes 21, noes 19. Ayes 21, noes 19. Item 243, number 3S is agreed to. Item 249, number 1S. Senator from Eastern Fairfax. Thank you, Madam President. I move that item 249, 1S pass and speak to the motion.

[03:52:51] Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, item 249, 1S authorized a working capital advance of up to $8.5 million to expand And Cardinal of the Human Capital Management System, that's the employee management system that we use here in Virginia, to include labor management and collective bargaining functionality due to Senate Bill 375, which is the legislation that I carried, which authorizes collective bargaining for state employees.

[03:53:23] In order to accomplish this, the software system has to be updated. Preliminary estimates for that are estimated to be about $8.5 million for FY27, including $1.5 million to develop business requirements and $5 million to do a new module, $2 million for technical adjustments to be able to get this accomplished.

[03:53:43] That's basically the only way for us to do the computer architecture so we can do collective bargaining. That's what the amendment does. Senator from Hanover. Thank you, Madam President. Madam President, speaking to the motion on the amendment.

[03:53:58] Senator has the floor. Thank you, Madam President. Madam President, I would ask the body to vote no on this amendment, and I'm not going to belabor the debate on collective bargaining, but I will point out to the body that we are not picking up the cost of collective bargaining in this biannual budget.

[03:54:17] This is picking up some of the initial cost of the infrastructure, but the real cost we're delaying for two years. Madam President, I don't know if that delay for two years is because individuals know how enormous the cost will be, not only on state budget, but on local governments.

[03:54:39] This is the beginning of obligating Virginia to a lot of increased taxes. This has not created more affordability. This has created more obligations that down the road, taxes, revenues will have to be increased in order to fund this.

[03:54:57] So I would ask that the body vote no. Senator from Eastern Fairfax. Thank you, Madam President. Speaking to the amendment. Senator has the floor. Thank you, Madam President. I just like to

remind everybody that collective bargaining does not require anybody to write any checks for increased salaries or benefits at all.

[03:55:18] If you read the bill, it says that any agreements, even arbitrated agreements, are subject to the approval of the governing body. In other words, subject to funding. And if you want to see how that works, just look at Fairfax County, which agreed to a collective bargain agreement, didn't have the money, and didn't end up paying what they contracted to pay, and are now renegotiating the agreement.

[03:55:43] They're not required to fund anything. The only thing that you're required is to have a conversation. And it's impossible to do anything unless we update the computer system, which is what this amendment's about. I hope it could pass this. The question is, shall item 249, number 1S, be agreed to?

[03:56:06] All in favor of the motion will say aye. Aye. Those opposed, no. No. The ayes have it. Item 249, number 1S, is agreed to. Seeing at least eight hands, this will be a recorded vote. The question is, shall item 249, number 1S, be agreed to?

[03:56:27] All in favor of the motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, noes 18. Ayes 22, noes 18. Item 249, number 1s, is agreed to. Item 265, number 1s.

[03:56:54] Senator from Eastern Fairfax. Thank you, Madam President. I move that item 265, 1s, pass, and speaking to that motion. Senator has the floor. Thank you, Madam President. This is another interesting one for me so can scratch my head 2651 s directs the state treasurer to spend money as we directed in state code why would that be necessary well turns out that um governor youngkin decided that with the hundred million dollars we collected in the last reggie auction shouldn't be spent and

[03:57:34] so it's been sitting there in a bank account for three years a hundred million dollars of taxpayer dollars sitting in a bank account and doing nothing for three years and madam president this is really surprising to me because you know half the money by law is required to go to energy efficiency half it's supposed to go to flood prevention which by the way a lot of it's been spent in part in our mountains which have been ravaged by floods and i'm sure they could use some more money to harden their infrastructure so that they're not as damaged as we continue to see

[03:58:08] the effects of climate change. But I've heard that energy prices are really high in certain parts of the state, especially high. And, you know, energy efficiency is the most efficient way you can save money investing in energy. Experts say that for every dollar you invest, you typically see $1.20 to $1.75 until you have total value earned returned through energy savings and tax credits in a short period of time. Air sealing pays for itself in two to four years. Smart thermostats pay for itself in one to two years. HVAC upgrades pay for itself in five

[03:58:44] to ten years. So there's been $100 million sitting there that could have already saved Virginians probably $100 million a year, $200 million a year if the governor had just dispersed it. It's all this amendment does is asks, directs the governor to spend the money that directed get spent and i would hope we could provide this relief relief to our constituents so they could afford afford to live their daily life a little bit better that's what the amendment

[03:59:19] does it's a clean affordability bill and i hope we could all support it senator from hanover thank you madam president speaking to the amendment senator has the floor madam president i think you heard the gentleman from eastern fairfax talk about reggie there's a fundamental view that's different.

When you tax somebody, as the gentleman said, you tax their energy bill, you take money out of their pocket. You make it less affordable for them to pay the bills. Then saying later, oh, we're going to give it to somebody else to do something with it, give it to the government

[03:59:55] to spend, that is not making their energy bill more affordable. If we wanted to make their energy bill more affordable, we would give it back to reduce the cost of their bill. Madam President, Even since we've been sitting here on the floor, I've been getting emails from constituents about the high cost of their bills this month.

[04:00:18] They are paying more for energy. We could give it back to them so they could pay less. The question is, shall item 265, number 1S, be agreed to? All in favor of the motion will say aye.

[04:00:35] Those opposed, no. Seeing at least eight hands, this will be a recorded vote. The question is, shall item 265, number 1S, be agreed to?

[04:00:54] All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:01:11] Ayes 21, noes 19. Ayes 21, noes 19. Item 265, number 1S, is agreed to. Item 286, number 1S. The Senator from Charlottesville. Madam President, I move that the amendment pass and I'd like to speak to that.

[04:01:27] Senator has the floor. Madam President, this bill or this amendment simply funds for two years the Prescription Drug Affordability Board policy that's passed the Senate three or four years in a row. We've all talked about affordability. This is about making prescription drugs more affordable.

[04:01:46] The question is, shall item 286, number 1S, be agreed to? All in favor of the motion will say aye. Those opposed, no. Seeing at least eight hands, this will be a recorded vote.

[04:02:06] The question is, shall item 286, number 1S, be agreed to? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[04:02:25] The clerk will close the roll. Ayes 31, noes 9. Ayes 31, noes 9. Item 286, number 1S, is agreed to. Item 288, number 1S.

[04:02:41] Senator from Charlottesville. The amendment passed, and I'd like to speak to that. Senator has the floor. Madam President, this amendment simply allows the Board of Medicine and Department of Health professions to take money out of the non-general fund dollars to fund one position each year to fund unconscious bias and cultural competency training within the Board of Medicine.

[04:03:10] I hope you'll agree to this amendment. The question is, shall item 288, number 1S, be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[04:03:27] Seeing at least eight hands, this will be a recorded vote. The question is, shall item 288, number 1S, be agreed to? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[04:03:44] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 28, noes 12. Ayes 28, noes 12. Item 288, number 1S, is agreed to.

[04:04:02] Item 359, number 1S. The senator from Northern Fairfax. Thank you madam president. This is the budget language that will authorize a Treasury loan to implement SB 2 which is the paid family medical leave insurance program. This is a policy that the Senate has passed numerous times. It will provide the startup money for the insurance program to and would be repaid with the individual contributions that will be paid by the premiums and again this will provide the opportunity for

[04:04:40] our families to take care of themselves or their loved ones instead of having to choose between a paycheck and the time to care for them the senator from Hanover thank you madam president speaking to the amendment senator has the floor madam president this is another one of the bills where there's a difference of an opinion and that is this is a tax on all employees when this This goes into effect, and I'll point out, Madam President, we're setting up the infrastructure now so the cost of that will be preloaded, but the cost to Virginians, every employee

[04:05:20] and most employers will pay the tax for this program starting in 2028. That tax is not going to come until after this budget is finished, then we're going to have to pick it up as we re-benchmark localities because they're going to pay for And as we deal with state employees, this is another expense that will cost Virginians more out of their paycheck every month and does not make their lives more affordable.

[04:05:50] Senator from Northern Fairfax. Thank you, Madam President. I just would remind the body that these are small increments, half of a percentage of someone's income in order to get 80% of their income when the worst thing happens to them so that they can continue paying their mortgage, paying their rent, putting food on the table, and being able to care for their child who might have cancer, for themselves, who might have a very serious illness, caring for someone at the end of their life, welcoming a baby into their family and being able to stay at home to bond with that baby.

[04:06:27] Every other country, industrialized country, plus 14 other states in the Commonwealth, I mean, into the United States and the District of Columbia, have working programs. This is something that will make lives better for all of Virginians.

[04:06:44] The question is, shall item 359, number 1S, be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. No. Seeing at least eight hands, this will be a recorded vote.

[04:07:04] The question is, shall item 359, number 1S, be agreed to? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[04:07:21] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Item 359, number 1S, is agreed to. Item 470, number 4S.

[04:07:40] Senator from Eastern Fairfax. Thank you, Madam President. I move committee amendment number 470, or 470 number 4S. Speaking of that motion. Senator has the floor. Thank you, Madam President. This amendment's another piece of the collective bargaining bill. It provides 2.5 million general fund. In the first year, 4 million. In the second year, to basically set up the PERB, the Public Employee Relations Board. That's a supervisory board within the executive branch that'll be there to mediate disputes that arise during the collective bargaining process, like if people can't decide who their which union is representing them or something

[04:08:20] like that it's there to resolve those kinds of disputes or but it's another piece necessary to accomplish collective bargaining I hope we get to adopt the amendment the question is shall item 470 number 4s be agreed to all in favor of the motion we'll say aye those opposed no the ayes have it the item 470 number 4s seeing at least eight hands this will be a recorded vote the question is shall item 470

[04:08:55] number 4s be agreed to all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 nose 19 eyes 21 nose 19 item 470 number 4s is agreed to. Item 479 number 1S. Senator from Eastern Fairfax. Thank you President. I move amendment number 479 1S pass and speak of the motion. Senator has the floor. Thank you President. Ladies and gentlemen, the Senate this this bill

[04:09:34] has to do with or sorry this amendment has to do with implementing skill games. The amendment basically authorizes the Department of Treasury to make make some loans in order to be able to cover the costs of regulating skill games and then they pay back those loans with the fees and revenue from the gaming activities themselves that way taxpayers I guess don't have to front the full cost on the front end with cash to fund for the reg the fund the skill games regulatory regime that's basically what the amendment does the question is shall item

[04:10:10] item 479 number 1s pass all in favor of that motion we'll say aye those opposed no the ayes have it item 479 number 1s is agreed to item 4-5.04 number 1s senator from charlottesville madam president i move that the amendment passed and i'd like to speak to that please senator has the floor madam president this is also policy that we've discussed on this floor probably twice before this session but every year that I remember being here

[04:10:47] this is it's we discussed this for a lot of reasons I guess but this simply allows state funds Medicaid primarily to be used for abortion care in the case of gross and totally incapacitating physical deformity or whether gross and totally incapacitating mental deficiency people that aren't on Medicaid can afford that sort of care but people that aren't deserve that sort of care the question is shall item 4-5.04 number 1s be agreed to all in favor of the motion

[04:11:25] will say aye those opposed no the eyes have it item 4-504 number 1s is agreed to item 4-14 number 4s senator from charlottesville madam president i move the that amendment be agreed to and i'd like to speak to that senator has the floor madam president um as virginians we should be proud that um since 1938 we've been as long as rating agencies have rated state budgets

[04:12:04] we've been a triple a state um and that's due in fact part to the fact that we have always been a a state that's conservatively budgeted our expenditures. We've been smart about that over the years. And it's true that we were running a surplus this year.

[04:12:20] It's true that there is one-time money to do things with. But the problem we have is we need structural balance in the budget. The data center tax exemption when it was proposed in 2008 was expected according to the fiscal analysis provided at that time to cost Virginia about 1.6 million dollars per year in revenue that we would give up as a result of the exemption well now it's about 1.9 billion dollars a year let me repeat that 1.9 billion dollars now we can either ask our taxpayers come up with the money

[04:12:59] to fund their priorities including education and police and transportation and everything else that we all care about or we can look for another way. There's 1.9 billion dollars. If you and I go to the store and buy something we're gonna pay sales tax on it but the data centers have been exempted from sales tax.

This amendment gives us the revenue that we have to have to produce a balanced budget and a structurally sound balance balanced budget. I hope that you

[04:13:32] will agree to it. Senator from Rockingham. Madam President speaking to this amendment. Senator has the floor. Madam President, it would be my hope that we would not support this amendment. I listened to my friend the senator from Charlottesville talk about the cost of this and the estimated cost at the outset. Quite frankly this is an industry that would not have even existed but for

[04:14:06] our decision to implement this tax exemption I find it unusual that I found some new friends around the Capitol today there are a lot of representatives of organized labor here and I'm not a traditional ally with respect to a lot of the issues that they traditionally come down and advocate for but this is an issue upon which we are able to absolutely agree we put a lot of

[04:14:39] emphasis on data on trying to study what the impact is of our decisions here and we do it typically a pretty good job we've got this great organization called Joint Legislative Audit and Review Commission which we pay a lot of attention to unless we don't like what they find and this is one of those instances in which this body doesn't like what the Joint Legislative Audit and Review Commission founds they found that this industry would not exist here in Virginia it certainly wouldn't have grown anywhere nearly to the extent to

[04:15:18] which it has grown but for the existence of these tax credits it also found our tax exemption it also found that that this industry will contract and those who believe that this is going to generate an ongoing revenue stream I respectfully submit that that is wrong and it's contradicted by the data there are 112,000 jobs in Virginia that are directly related to our status as the

[04:15:50] global leader in data and information processing 8.9 billion dollars worth of salary being paid every year in Virginia as a consequence of our status in that regard 40 billion dollar economic output now I know that there are some counties in Virginia who may have gone a bit overboard in approving data centers and

[04:16:25] that they have it within their grasp and their ability to simply say no to simply say no and they need to do it but to say to say that across Virginia counties that are struggling to be able to afford basic infrastructure to be able to afford basic services like emergency services or to build schools that you can't enjoy some of the benefits that other counties have enjoyed

[04:17:01] is simply wrong I know that there are counties in Northern Virginia who are receiving over a billion dollars I mean you talk about the the prospect that we might be able to receive a billion dollars in tax revenue in years to come there are counties in Virginia that are receiving a billion dollars counties in Northern Virginia that are sitting on 250 million dollar surpluses and other counties and other parts of the state that are just beginning to experience some of the benefits that are being offered by you know data center

[04:17:38] development in areas other than Northern Virginia and we're saying no you know I heard a long time ago that you know we have now left the NIMBY phase not my backyard and we've entered the banana phase build absolutely nothing anywhere near anything you know I we this is an exercise in economic self-destruction we need to embrace this in a responsible way I understand that

[04:18:16] we've worked hard over this past couple of years to make sure that data centers are paying their fair share, and we should. We should make sure that residential and other customers are not being

saddled with a disproportionate share of the cost of providing energy to data centers, and we're working on that. But to simply slam the door and say that we don't want you anymore, that we don't want to receive those benefits, that we don't want counties

[04:18:50] outside of Northern Virginia to realize those benefits, I respectfully submit, is wrong. You know, I might have supported this if we had simply limited it to planning District 8.

[04:19:05] And I think maybe there are some people in Northern Virginia who might have liked limiting this to planning District 8. If you don't want them, don't approve them. But don't shut the door for the rest of Virginia who might be willing to have one or two data centers in rural counties that have the infrastructure and the ability to host them.

[04:19:29] We're entering a new phase in which these data centers and the folks who are developing them are also on the cutting edge of providing new options for the generation of power and and delivery of power. They are on the cutting edge of preserving water and conservation.

[04:19:53] We need to encourage that and not cut it off. So it would be my hope that my friends in here would link arms with organized labor, link arms with the pipe fitters, link arms with the electricians and the plumbers and defeat this amendment.

[04:20:15] The senator from King George. Thank you, Madam President. Speaking to the amendment. Senator has the floor. You know, I've been uncharacteristically quiet today, and I plan to sit here and just vote for the budget in peace, but I had to stand up when I heard economic self-destruction.

[04:20:36] So, these are entities that have run across the state of Virginia. They're stressing our water systems. They're stressing our supply of land. They're making it harder for people to build and buy homes, harder for farmers to get water to irrigate their crops, and it goes on and on again.

[04:20:54] And we're supposed to yet give them what last year was a $2 billion tax break? A $2 billion tax break? None of the bricks-and-mortar businesses where I live get that tax break.

[04:21:09] And nobody else. Every time I go to the store, I have to pay for it. You're talking about corporations that have profits in excess of $100 billion a year, and yet we're going to give them a tax break. I would submit to this body that this is the right thing to do.

[04:21:26] This is the fair thing for Virginians. This is the tax money that we should be using to build roads, to build schools, to send to localities so that they can take care of their emergency services and everything else.

[04:21:43] And furthermore, I'd be willing to bet anybody on this floor, this isn't going to slow this train down one bit. It's not going to slow it down one iota. And I hope everybody will vote for this amendment. The senator from Western Prince William. Thank you, Madam President. Speaking to the amendment. Senator has the floor. Madam President, where to begin? Let's start with what we heard before about the need for this x y and z tax revenue and all that not a president why is it that in western prince william county when we were told think of the tax revenue that was going to

[04:22:22] come in from the data centers that they then turned around and sued prince william county over their property tax assessments where was that think of the tax revenue turned around and And it cost the county an additional $500,000 to have to go fight some of the largest corporations that America has ever seen in court.

[04:22:43] That's number one. Number two, what happened in the city of Manassas, Madam President, when the city council was told, hey, you should bring in these data centers along Godwin Drive. Think of the money that you're going to get. And then when they approved it, they told, oh, by the way, sorry, we have a bank as a tenant because we use their bank servers are there, which means you're not going to collect on that C&P revenue that you thought you were.

[04:23:10] And it's going to cost you seven digits. Then, Madam President, we hear, think of the jobs. We just heard about this. Think of the jobs. What happened to the employees at Merrifield Garden Center in Gainesville when a data center corporation bought them out for $160 million?

[04:23:31] Why are we giving tax breaks to an industry that has multi-trillion dollar players within a multi-trillion dollar industry? Not just a million, not just billion anymore, trillion is where we're at now.

[04:23:47] And so I look at this and I go, we've got to do something about this. And so from the time I've been in the Senate, this is my third session in the Senate, I have carried this budget amendment year in, year out, year in, year out, year in. And then finally something happened.

[04:24:04] Madam President Pro Tem, chair of finance committee, looked at the numbers and said, the math ain't mathin'. It's about time we do something about it. And I got asked the other day, someone came up to me over my office and says, well, do you think she's really serious about this?" I go, "Have you ever met the senator from Portsmouth?" I have every reason to believe that every word that she says is absolutely where she is on this. And I am so grateful for her leadership on this and for really making sure that we have a balanced budget here that is structurally sound. And if I

[04:24:43] can associate my comments also with the senator from King George on this, you're going to notice there's good bipartisan support on this. And why is it? Because for years now, we've been picking winners at the same time when we know that tax dollars, those tax dollars coming from this, are supposed to be used for fixing roads and feeding kids. What does this do? When the senior senator from Prince William was making his subcommittee report in Senate Finance, we heard directly that the money that was going to come from this is going to be used for transportation

[04:25:17] funding, which is direly needed. That's great. We also know that this budget is also going to expand refundability or reimbursement for school breakfast. And so what we are seeing right here, if you were in western Prince William County, if you're in Loudoun County, you've been crying out to your legislators, do something. This is the do something moment of the 2026 General Assembly session. With that, Madam President, I am so grateful to be able to vote for this today.

[04:25:47] Thank you, Madam President and Madam President. The Senator from Colonial Heights. Madam President, briefly speaking in support of the amendment. Senator has the floor. Madam President, I think Virginians have been slowly waking up to the fact that one of the reasons that their electric bills have gotten higher and higher and higher over the last several years is because of the proliferation of the data centers around the Commonwealth and the realization that we, the rate payers, have been subsidizing and paying for the grid build out,

[04:26:21] the additional generation needs, the needing to import energy to power these AI data centers. And that's one thing. And then we came into this session, and the good work of the Senate Finance Committee and Madam Chair of coming up with this budget showed that it's not just that we've been

subsidizing the building of the electric grid and the generation and the importing of power for these data centers, but we have also been giving them a huge $2 billion a year corporate tax break.

[04:27:00] And so that is a double whammy that we have been putting on the backs of Virginia families that's raised their electric bills that has cost them $2 billion a year to subsidize these huge tech companies doing these AI data centers and so when I saw this in the budget I was very happy to see it very impressed and was just wanted to give a shout out to madam chair and her strong leadership on this issue I saw some of her comments earlier today on this and I think this is a real opportunity for us around Virginia to

[04:27:38] provide more affordable electricity rates make sure that we are bringing back those dollars and providing them to Virginians and so I'd urge the body to support this amendment. The Senator from Charlottesville. Madam Madam President just to speak to the bill. Senator has the floor. Just briefly because I do not mean to prolong the discussion. The term economic self-destruction got my attention. I think everyone in this room, everyone in this chamber ought to

[04:28:15] respect the work madam chair the members of the finance committee and the staff put into this budget but if we don't adopt this budget this amendment we will throw the budget out of whack we will have to go back to work to produce a budget we have to go forward with this I would suggest you that economic self-destruction will be brought on by those people that vote against this

[04:28:41] amendment to request that we work a little harder and work a little longer the senior senator from Virginia Beach thank madam president speaking against this amendment senator has the floor madam president I'd like to remind the

[04:29:19] body that the reason that we put this tax break in years ago was because when we were trying to attract the data center industry, they said, hey, we have to spend billions and billions of dollars every 24 to 36 months for a technology refresh. And we thought in the General Assembly it would be a great idea since we were trying to attract a business that brought in billions of dollars for us but we thought it would be a great idea to give them a tax break on the technology refreshes

[04:29:55] they were doing every 24 to 36 months and that oh by the way when they did the technology refreshes that technology would be once retired from the data centers repurposed back into the communities so madam president i just want to remind the body that that's truly why we put this tax break into effect for the data centers because they put billions and billions of dollars into technology refreshes every 24 to 36 months thank you the senator from lynchburg madam president rise to speak to the amendment senator has the floor and there are great debates on both sides of this

[04:30:35] amendment and and the thing that disappoints me is that we have not had any of these debates in our committee or on this floor i heard nothing absolutely nothing about doing away with the tax breaks for data centers until sunday afternoon was the first time i'd heard about it the tax exemption was put in in a bill the tax exemption should be removed in a bill it should have been a bill that was filed it should have gone in front of a committee people should have

[04:31:09] debated it and witnesses should have testified to throw in a 1.4 billion dollar deal in the bill amendment for the budget on the very last day without it being discussed by anyone debated by anyone and that is the problem i have with the process that we have right now and fortunately well it's really horrible to say but the house has a budget that doesn't have that in it so maybe if we do if we pass this

amendment we can work off the house's budget we don't have to start over from ground zero thank you madam president matter

[04:31:45] president senator from Western Prince William that a president will the senator from Lynchburg yield for a question will the senator yield yes senator thank you madam president matter president I would ask the senator if he had watched the hearings that the Senate Finance Committee had when members were introducing budget amendments. Senator from Lynchburg. No, Madam President, I can assure the Senator from Prince William that I was not watching the Finance Committee meetings. Madam President. Senator from Prince William. Senator, yield for a second question.

[04:32:21] Senator, will you yield? I will yield. Senator from Prince William. I had my other committees to attend in my meetings and I got one that's going to go to about 8 o'clock tonight. Senator Madam President, I would ask the... Yeah, so I've been doing that. Senator from Lynchburg will pause. I will yield, Madam President, I apologize.

[04:32:37] Senator from... I would ask the Senator, would it not be the responsibility of any member who says that there was not a debate to go and check the tape to see if any members had actually introduced this, spoke about it, on camera, on record, in front of the Senate Finance Committee to introduce the entire concept of it, and therefore give the public the opportunity to weigh in for or against, as well as the other legislators who serve in this body before the budget was actually adopted by the Senate Finance and Appropriations Committee.

[04:33:08] Senator from Lynchburg. Yes, Madam President, speaking to the question, I don't know how many budget amendments were presented to the Finance Committee, a huge number, where I don't believe they took testimony from the public. and i know for a fact that the data center folks were not aware of this because they did not come down and talk about the repeal of their uh their exemption and in fact many were shocked when it came out on sunday and have been making the rounds i believe to speak to the senators especially on that side of the aisle about what you're trying to do to them nor did it come over from the house

[04:33:46] any idea, and it is not in the House budget, repealing their exemption. So the proper way to have done this would have been for the senator or any senator to have proposed a bill to amend our legislation that they granted this exemption to grant, to introduce that bill. It goes through committee and witnesses testify. We simply did not have that in this case, Madam President. I hope I answered the senator's question. Senator from Prince William. Will the senator yield for one Final question.

[04:34:16] Will you yield, Senator? Certainly, Madam President. Madam President. Senator. Madam President, I would ask the Senator if he acknowledges that there was, in fact, a budget amendment introduced by yours truly that did exactly what this is calling for, with the only difference being that this one goes into effect January 1st of next year, whereas what I put in went into effect, would have gone into effect of July of this year.

[04:34:41] Senator from Lynchburg. Yes, Madam President. Advised that the senator did in fact introduce a budget amendment. Thank you madam president Seeing no other senators who wish to speak the question is Shall item 4-14 number 4s be agreed to all in favor of the motion will say aye Those opposed no Seeing at least eight hands, this will be a recorded vote.

[04:35:16] The question is, shall item 4-14, number 4S, be agreed to? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote?

[04:35:34] The clerk will close the roll. Ayes 28, noes 12. Ayes 28, noes 12. item 4-14 number 4s is agreed to we have three floor amendments first is

[04:36:01] Senator Suterlein item 15 number 3 item 15 number 3 Senator from Roanoke thank you madam president I move that we waive the reading of the floor amendment the question is shall the reading of the floor amendment be waived all in favor of that motion will say aye those opposed no the ayes have it the reading the floor amendment is waived senator from roanoke thank you madam president item 53 s is an item

[04:36:40] senator do you want wish to move the amendment and then i wish to move it and speak to it senator has the floor thank you madam president item 53 is an item that we've seen before what it seeks to do is provide additional resources at the office of the attorney general for ratepayer advocacy. In these cases, the utilities have amazing attorneys, they're highly well compensated, and they have huge teams that come up and advocate for why rates

[04:37:13] ought to go up. And our constituents, the captive ratepayer, has the Office of the Attorney General. And in past years, we've discussed this, and I understand not everyone loved the previous Attorney General, and I know not everyone loves the new Attorney General, But this isn't about who the Attorney General is, this is about the ratepayer, and I hope it'll be the pleasure of this body to do this.

[04:37:38] And give these resources to the Attorney General's office so that they can stand up for our captive ratepayers against the very well-financed utilities that are the opposing counsel. Thank you, Madam President. Senator from Eastern Fairfax. Thank you, Madam President, speaking to the motion.

[04:37:57] Senator has the floor. Thank you, Madam President. to oppose the amendment. The Attorney General's Office currently has a Section Chief and three Assistant Attorney Generals who are currently dedicated to this to review every filing by Dominion and APCO with the two regulated monopolies that we have.

[04:38:16] The General Assembly recently reconstituted and funded the Commission on Electrical Utility Regulation to provide greater General Assembly oversight of this function. If I'm not mistaken, Nobody put in a proposed budget amendment to even fund this.

[04:38:34] So a floor amendment is kind of an unusual way to do it, given it wasn't even proposed by a member. And Madam President, I think that AG's office has adequate counsel right now for lawyers is enough to do this job right now. I don't even believe the Attorney General asked for this, if I'm not mistaken. Senator from Roanoke.

[04:38:53] Madam President, if no one else wishes to speak, just briefly. Senator has the floor. Thank you, Madam President. Does anyone really believe that the Opposing Counsel has four attorneys? They got a lot more attorneys on the other side that are very well compensated, and this body recently removed one of the best advocates we had from that office for a board where they also advocated for us.

[04:39:20] I hope that we will do this, and I suspect that if we don't do it this year, you're going to see it requested by the Attorney General's Office. I at least hope we would if we don't do it this year because it's

something that on a bipartisan basis has previously been recognized that we need to do and I hope it'll be a pleasure of the body to do it.

[04:39:37] Thank you Madam President. The senior senator from Prince William. Madam President speaking to the amendment. Senator has the floor. And I apologize to the gentleman for, I was not going to speak until he mentioned something.

[04:39:53] I hope we defeat the measure but I would suggest that the senator may be pursuing productivity in positivity from VACO and VML to maybe fund it this is something that they should be collaborating on at the local level where they have especially small area rate cases and have a collaborative effort but this is out of place in this budget I think the centers maybe some discussions with some other parties where you actually do have localities that are asking for participation and localities don't do it even though they're they're trying to collaborate and help help the in these rate cases I think there's some other

[04:40:26] ways to do it, but not in this budget. The question is, shall floor amendment item 50 number 3S be agreed to? All in favor of that motion will say aye. Those opposed, no. The no's have it. The

[04:40:51] amendment is not agreed to. Floor amendment number two from the senator from Roanoke. The senator from Roanoke. Thank you madam president. I move that we waive the reading of the floor amendment.

[04:41:16] The question is, shall the reading of the floor amendment be waived? All in favor of the motion will say aye. Those opposed, no. The ayes have it. The reading is waived. Senator from Roanoke. Thank you madam president. I move that we adopt the floor amendment and speaking briefly to it.

[04:41:32] Senator has the floor. Thank you madam president. There's very few states left in the union that still tax groceries. And sadly, this Commonwealth is one of them. We were able to get rid of the state portion a few years ago. That was something that got started, as I often point, by the fellow in the painting behind me a decade before I was born. And he was right that we shouldn't be taxing groceries then, and we shouldn't be taxing groceries now. Now, it is terrible that we tax a gallon of milk or a loaf of bread and I hope that it will be the pleasure of this body that we

[04:42:10] join more than 40 other states in the union and no longer tax groceries and we can do this with something that we just adopted on a bipartisan basis with that data center tax money that we will now actually be collecting again.

[04:42:27] So Madam President, I hope that it will be the pleasure that we no longer tax groceries and we adopt this amendment. senator from Charlottesville madam chair hope we will not adopt this madam president I apologize I hope we will not adopt this amendment I'd like to speak to the senator has the floor I respect the senator from Roanoke's continued efforts to get localities to eliminate their sales tax as a state we do not tax food and we have it for a number of years this is something that

[04:43:01] would be better argued before city councils and boards of supervisors a lot of you remember the car tax discussion that we've had and I guess we'll have some have again but that began more than 30 years ago we passed car tax relief we sent we capped that at 950 million dollars a year that the state spent that the state spends on car tax relief most of that money goes to Northern Virginia and Hampton Roads. It goes to high-tax localities, Charlottesville and Albemarle. It goes to a handful of localities, so it's a giant sucking sound of money that goes to those high-tax

[04:43:40] localities. This 69% of the data center money comes primarily from Prince William and Loud. It would be a reverse sucking sound of that money if we were to do this to every other local government in the state. This is an argument that needs to be had at the local level.

[04:43:59] This amendment would throw the budget out of balance again, take money we've already spent and used for other purposes and send it to localities. It would set up another program that the state government should not be in the business of telling localities how to take care of the business.

[04:44:20] We've got to get out of that, in my view. So I hope we vote against this. Senator from Roanoke. Does anyone else wish to speak, Madam President?

[04:44:36] Senator, you are the last speaker. Alright, thank you. Briefly, first, I would suggest that the localities are political subdivisions of the Commonwealth, and we routinely tell them what they ought to do, and I think we did it about a dozen times earlier today, and we're probably doing it about a hundred times in this budget, and oftentimes it's very good things, like we have the teacher pay increase in here, that I really like the way we structure it, and I've agreed with that on a bipartisan basis for a long time.

[04:45:06] So I reject the idea that we ought not tell the localities what to do when it comes especially to things as clear-cut as should we be taxing milk and bread and other unprepared foods that are simple groceries. We are out of step with the rest of the union.

[04:45:23] We are a wealthy commonwealth that has the resources that we ought not be taxing these things. And I hope that we will end the tax on groceries. Thank you, Madam President. the question is shall the floor amendment number two item 3-5.24 number 1s be agreed to all in favor of the motion we'll say aye aye those opposed no no seeing at least eight hands this

[04:46:01] will be a recorded vote the question is shall a floor amendment number two be agreed to all in favor of the motion will record their votes aye those opposed no this are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk close the roll as 19 nose 21 eyes 19 nose 21 the floor amendment is not agreed to floor amendment number 3 from the senator from

[04:46:39] colonial Heights senator from colonial Heights thank you madam president I move that we waive the reading of the floor amendment. The question is, shall the reading of the floor amendment be waived? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The reading is waived. Senator from Colonial Heights. Madam President, I move that the floor amendment be adopted and speaking to that. Senator has the floor. Madam President, this is a budget amendment that is going to do something that Virginians have wanted us to do

[04:47:14] for a very very long time and that is to finally end the car tax not to just trim it not to study it next year but to end it for good and for years just about everybody every one of us has promised to get rid of the car tax Republicans have certainly Democrats have governors have candidates have people have heard it so many times that they barely believe it anymore our governor campaigned on it on ending the car tax in her race last year and so we should take all of us at our word who have

[04:47:51] campaigned on this issue over our time in public office and put our money where our mouth is and so here is what this amendment does that's before you in plain english first and most importantly it delivers full car tax relief beginning in this biennium in tax year 2028 this amendment delivers full car tax relief and ends the car tax for Virginians that means the car tax bill goes away now second and I know some people may be wondering what about localities this budget amendment keeps

[04:48:28] our localities whole we recognize that localities rely on this personal property tax revenue and ending the car tax here can't mean that in the general assembly we just dump that cost back onto our counties and our cities and so this amendment does just the opposite it requires the commonwealth to reimburse our localities so that they are held harmless by our repeal and ending of the car tax this budget amendment keeps the current car tax relief structure in place and as i said beginning

[04:49:03] in this biennium it adds the additional amount necessary so that the relief is fully funded and and our localities are held harmless. And that matters because the point of this budget amendment is not to create a new local government problem. The point is to solve a problem for the taxpayer and to do it responsibly at the same time.

[04:49:24] And that's what this budget amendment does. It does it responsibly. And so the question is, how do we pay for this? How do we end the car tax and do it responsibly and hold our localities harmless? Here is the answer. This amendment does not stop capital projects.

[04:49:42] It just changes how we finance them. It shifts certain general fund cash that would have gone into capital fund pools, and it uses that cash to give Virginians full car tax relief in this biennium. And then it keeps those capital projects moving forward by authorizing bond financing through the Commonwealth's existing bond authorities.

[04:50:06] So rather than just simply paying cash for capital projects, we would finance them through bonding. capital projects are exactly what bonds are for the projects stay we just finance them instead of paying all cash that's a reasonable trade it's how we deliver real car tax relief without breaking our commitments and madam president the car tax is not unpopular because virginians don't understand it it's unpopular because people understand it perfectly you work hard you buy

[04:50:41] a car with money that you already paid taxes on you pay a sales tax on the purchase price of the car. You pay a gas tax when you fill it up every week. You pay fees every year. And then you get hit again for owning the thing that you need just to live your life. You have to have a car to have a job. It's a job requirement. It's necessary for child care. It's necessary for health care.

[04:51:05] It's a basic fact of life, not a luxury. And so when that car tax bill shows up every year, it feels like the government's reaching back into your pocket again. And that's why it's the most tax in Virginia and so madam president I want to be clear about what happens here today I think Virginians have heard enough about promises of the General Assembly ending the car tax many of us have campaigned on it folks who have campaigned for governor have talked about it and this amendment

[04:51:41] actually does it and it keeps the localities whole and it pays for ending the car tax in a responsible way without sacrificing those capital projects and so madam president I would ask that the Senate agree to adopt this budget amendment.

[04:52:01] The Senator from Eastern Fairfax. Thank you, Madam President, speaking to the amendment. Senator has the floor. Thank you, Madam President. First of all, I think there's one thing we can agree on about this amendment, which is that everybody, I guess the car tax is probably the most hated tax that's on the books.

[04:52:22] I don't know of anybody that enjoys paying the car tax every year. It has to be paid once a year, it's paid in a horrible time, it's paid, it's not spread out people have to write one check out of the checkbook nobody likes that but this amendment does not provide car tax relief this amendment from my perspective

is a stunt let me explain why it is not full relief it's not even close to full relief the amendment is written basically says that we're going

[04:52:55] to we're going to ban any locality from imposing a car tax we're going to take 1.1 billion dollars in general fund cash, had a capital appropriations account, put it in a special fund, and then borrow a bunch of money to cover six months of the car tax. Six months. Not a year, six months. You know, one friend of mine once told me, Madam President, if you see a Republican coming walking up to you, grab your walk, because they're about to borrow a bunch of money.

[04:53:33] Well, Madam President, this amendment, this amendment, Madam President, would consume $2.2 billion of our $2.98 million in allocated bond capacity.

[04:53:53] Not only would this make our budget structurally unbalanced, because somebody's going to have to find $3 billion a year starting once this budget's over, but it would also consume almost our entire debt capacity. What do you think that Moody's and S&P are going to do with that?

[04:54:08] What do you think that will do to our AAA bond rating, which we have held since 1938? Imagine what would happen to our borrowing costs on an annual basis. We borrow about $10 billion right now just to fund ongoing state projects every decade.

[04:54:24] About $10 billion per decade, about $1 billion a year, sometimes $1.4, $1.5 billion a year, just for ongoing stuff. You get rid of that AAA bond rating, it'll cost us hundreds of millions of dollars a year. This is not a serious proposal, Madam President.

[04:54:40] It is a proposal which would structurally unbalance our budget, pass the buck on to future General Assemblies to go figure out what to do with and destroy our bond rating. If there's a way to come up with $3 billion a year to cover this, to pay for local schools, which is what the car tax pays for at localities, then make a serious proposal about how localities are going to find that $3 billion.

[04:55:03] But doing this, borrowing a bunch of money, ruining our debt capacity, ain't it. I'd hope we'd reject this. The question is, shall floor -- Madam President, I have the last word. Senator -- last word. Thank you.

[04:55:18] Senator from Colonial Heights. Thank you, Madam President. As the Senator from Eastern Fairfax said, the Commonwealth bonds and borrows money every year for capital projects. That is a normal, basic function of government. It is not outside the normal operating procedures for us to finance capital projects.

[04:55:40] facts that that is a best practice in many cases the idea here is is that we have cash in the Commonwealth's coffers that during this budget cycle during this biennium could end the car tax for Virginians and people are tired of hearing politicians say that I support ending the car tax just not today and And the answer cannot be, well, we don't know what we're going to do two or three years from now.

[04:56:16] The idea is we need to listen to our constituents who have asked us for decades to get rid of this car tax. And when we have an actual opportunity to do it, and there's a budget amendment before this body that accomplishes it, And it does not create a structural imbalance in the Senate's budget because it's taking dollar for dollar money that would otherwise be going just to capital projects and instead going to car tax relief.

[04:56:49] And so that I think we need to be very, very clear about what a yes vote is and what a no vote is on this budget amendment. A yes vote is to end the car tax and a no vote is to keep the car tax. is an opportunity that is before us now everyone on this side of the aisle will work with everyone on that side of the aisle to find the opportunities to make this something that we continue from biennium to biennium but it's high time that we listen to virginians who have demanded

[04:57:24] an end to the car tax and we have the actual opportunity to do it right now with this vote And I'd ask that the body support the budget amendment. Thank you, Madam President. The question is, shall Floor Amendment No. 3, Item 4-14, No. 6S, be agreed to?

[04:57:45] All in favor of that motion will say aye. Aye. Those opposed, no. No. The ayes have it. Seeing at least eight hands, this will be a recorded vote.

[04:58:06] The question is, shall Floor Amendment No. 3 be agreed to? All in favor of the motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:58:30] Ayes 19, Nose 21. Ayes 19, Nose 21. Floor Amendment #3 is not agreed to. The Senator from Portsmouth.

[04:58:45] Madam President, Madam President, I move that the rules be suspended and the third constitutional reading of the title of the bill be dispensed with.

[04:59:07] Does the Senator from Hanover wish to speak? The question is, shall the rules be suspended and the third constitutional reading of the title be dispensed with?

[04:59:23] all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero the motion is agreed to senator from Portsmouth thank you madam president madam president I move the bill pass would the senator like to speak to that motion I think we've said enough

[05:00:00] the senator from hanover madam president rise to speak to the bill senator has the floor madam president i want to say you know as we've gone through this debate today there's one thing that you can see we focused on 25 30 items in this budget and there are hundreds of others where we can agree and i want to thank the senator from portsmouth in particular but i think all the

[05:00:35] members of the committee, and particularly our staff, have done a tremendous job of deliberately talking through issues, having conversations, finding where we can collaborate and agree, and then being respectful enough of each other where in the places where we cannot agree.

[05:00:56] And Madam President, I think that there are some very positive things in this budget. I think that there will be some questions about differences of this budget between the Senate and the House, and particularly in reference to the tax surrounding data centers.

[05:01:15] It's interesting. The House of Delegates took a different approach. They got to the same conclusion of taxing data centers when they put in restrictions and regulations that are not technologically able to pass. They just didn't yet spend the money.

[05:01:31] So as this goes through the process, there will be a reconciliation of those items. But Madam President, one thing struck me at the end as we were debating on amendments, and it struck me when the

Senator from Eastern Fairfax talked about the car tax and creating an obligation in the future.

[05:01:54] Madam President, there are two items in this budget that are going to be incredibly expensive for Virginians. Those two items are the tax on employees and employers. And yes, Virginia as an employer is going to have to pay that tax on their employees.

[05:02:14] And local governments are going to have to pay that tax on their employees. And Madam President, I realize that there's some differences of view, but collective bargaining is going to be incredibly expensive.

[05:02:30] If it wasn't going to be, we wouldn't need to do it. Right now, localities have the ability to do it. Now they're going to have to go through a process, have to set up a system. You only create this structure if you think it's going to happen, otherwise it doesn't need to be there.

[05:02:49] I know previous senators have used terms like "bills in the drawer" or "obligations in the future," but Madam President, those two items in this budget are going to cost Virginians money out of their pocket.

[05:03:07] going to cost them money in taxes not just state taxes but local taxes and madam president as we've discussed in other forums and at other times some jurisdictions talk about that being in the hundreds of millions a year madam president when you add that up across Virginia that makes the car tax pale so as Virginians are thinking about things they should think about collective bargaining and if Virginians don't like the car tax they should think about the

[05:03:45] fact that that could cost more than what they're paying now for out of their pocket for car tax so madam president there are a lot of things that I like in this budget and there are a tremendous number of things that I like about working with the senator of Portsmouth even then when we don't agree we have the ability to still have good conversation and work together and I truly appreciate that and find that it's probably rare in capitals across this

[05:04:18] country and certainly rare across the Potomac but Madam President those future obligations and what they will mean to Virginians and the financial negative impact it will have on them are more than I can bear in order to vote for this budget so I hope as we go through this process we'll continue the conversations we'll continue to work and I am confident in madam chairman's ability to do that with all of us but this is a point where we just disagree

[05:04:55] about what that impact will be to Virginians so thank you madam president and thank you madam chairman the senator from Eastern Henrico thank you madam Madam President, I am abstaining pursuant to Rule 36 on Item 220, Item 221, Item 222, Item 224, Item C26, Item C27, Item C29, and voting on Senate Bill 30 as a whole.

[05:05:31] Thank you, Senator. Senator from Eastern Fairfax. Thank you, Madam President. I'm abstaining pursuant to Rule 36 on Item 362 of Senate Bill 30, I'm sorry, but voting on Senate Bill 30 as a whole and speaking to the bill.

[05:05:51] Senator has the floor. Thank you, Madam President. Appreciate the comments from the Senator from Hanover, but you know, we have a different perspective about what this budget's about. You know, voters last election made one thing clear, that they're being squeezed from every direction right now, and we have a budget before you right now that takes direct aim at that concern.

[05:06:17] first i just want to talk about why we're here i mean why i'm sorry why why they're being squeezed last week you know the supreme court struck down the president's authority to impose sweeping tariffs but as soon as they did the president said he's going to put them right back not only is that going to keep prices where they are but there's something called price stickiness that the news was reported i heard on npr yesterday about how prices are not going to go down because of those tariffs once prices go up they just don't drop when we had a senate finance

[05:06:54] meeting back in december at odu the uh the professor who leads the um i forget what they call it but the virginia center for um i forget what it is but he focuses on the virginia economy they put out the state of the virginia economy report every year he said that president trump's tariffs were the largest tax increase imposed on americans in 50 years we didn't do that and people on this side of the isles party didn't do that and i've been surprised i haven't heard more public criticism about that from the other side given the uh allergy to taxes that they have but that's

[05:07:33] effectively what tariffs are and madam president this budget while washington is working as hard as it can to make things more expensive for americans those of us here are doing the exact opposite we've advanced legislation that's reflected in this budget to raise the minimum wage to 15 an hour this budget reaffirms our commitment to establish paid family and medical leave what that means for virginia families is financial stability during family's critical moments a new child serious illness a family emergency and having to choose between their job and caring for someone they believe we also back that up in this budget with a three percent salary increase

[05:08:10] for state employees real investments in the workforce two percent for teat for the state support local employees like teachers 560 million dollars in total workforce investment over the biennium and 243 million dollars for our state employee health insurance premiums for the people who teach maintain our roads and staff our courts and and help our most vulnerable citizens that delivers real affordability what are we doing on health care 400,000 Virginians 400,000 Virginians get their health care health insurance through the ACA marketplace now while the Republican Congress felt like it wasn't important to continue the tax credits when they repealed them or

[05:08:48] didn't fund them in the or didn't extend them in HR 1 now enrollees are facing premium increases around a hundred and fourteen percent there was a woman that was quoted in the Cardinal who lives in Salem she said her marketplace premium jumped four hundred dollars a month that's five thousand dollars a year another woman said her premium doubled to twelve hundred dollars a month that's fourteen thousand dollars a year thanks to Congress what are we doing in this budget we put two hundred million dollars in to reverse that this

[05:09:26] budget will deliver real affordability for Virginians and a vote against it is is to vote against delivering that kind of affordability. What else did Congress do? You know what they did? They said, we're not gonna fund food assistance anymore. And what happens when you don't fund food assistance?

[05:09:42] Well, hunger just doesn't go away, just like health doesn't just change. People don't get healthier all of a sudden. All this does is moves the cost of somebody else's balance sheet, or it moves this problem to a child's empty stomach.

[05:09:57] This budget takes that seriously. So we've set aside $135 million in anticipation of snap cost-sharing requirements. We put $100 million in increased administrative costs, $2 million to vendor support, $2.4 million to a Quality Assurance team to catch and correct payment errors to save our taxpayers money.

[05:10:15] And this budget also invests $17.6 million to expand school breakfasts across Virginia, which is important, I know to one senator over here on my right. This budget also invests in child care. As a working parent in Virginia, their single biggest affordability challenge, and a large number of them will tell you, is child care.

[05:10:32] Child care costs more than college tuition in many parts of the state. disproportionately women leave the workforce and turn down promotions and take jobs below their skill level just to make their schedule work because of child care problems this budget puts 50 million dollars biannally in early childhood in in childhood care pilot program that partners with employers and higher education institutions to access it directly that's the kind of targeted investment delivers affordability for people matter president this budget also delivers on transit I know that's in many parts of the state transit's important in northern Virginia it's absolutely critical metro is not just a convenience. It's how people get to work who don't have cars. It's how they access health care. It's

[05:11:11] how they participate in the economy. Transit affordability, economic affordability are the same, and we have to treat it that way. This budget commits $205 million per biennium to support WMATA in Northern Virginia, which, by the way, is the rocket fuel of our economy in Northern Virginia, which is also what powers the budget of the state. We would not have attracted Amazon and all the high-tech employers, everybody else in Northern Virginia, without Metro, because they want to locate next to these metro stations that's where people want to work and live there's also money in this budget for transit all around the state including Hampton Roads in Richmond the number one thing you also hear from people about

[05:11:47] their affordability problem is housing Fairfax County we just learned if you look at the if you read the clips this morning has lost 40,000 people in the last five years it had the most more people move out than moved in by 40,000 people the reason for that is housing costs this budget puts 50 million dollars into the Housing Trust Fund, including a pilot for mixed income housing and $13 million for eviction protection and legal aid. Madam President, how are we paying for this? You've already heard.

[05:12:19] We're going to pay for this by repealing the data center sales tax exemption, which will save on a conservative basis $1.6 billion this biennium. But in reality, it costs us $1.9 billion just this year alone. This budget is all about affordability. It's all about fairness, Madam President. And I hope when I look up at this board in a second that everybody in this chamber listen to what the voters said last year and we see 40 green lights. The Senator senior senator from Prince William. Thank You Madam President in accordance with

[05:12:54] rule 36 I'm abstaining to 374 number 3S but voting on the Senate bill 30 as a whole. The junior senator from Virginia Beach. Thank you Madam President out of abundance of caution I am abstaining pursuing through 36 and item 469 number 1s but voting on SB 30 as a whole. Senator from Portsmouth. Thank you, Madam President.

[05:13:24] Madam President, I am abstaining pursuant to rule 36 on item 40, number 1s, but voting on Senate Bill 30 as a whole. Senator from Portsmouth. Thank you, Madam President. I am abstaining pursuant to rule 36 on items 489, number 1s, 491, number 1s, item 291, number 4s but I'm voting on the budget as a whole senate bill 30. Madam President if all the abstentions

[05:14:02] have been given I just want to reiterate my statement from Sunday this is a very responsive budget and it applies it is responsive to the needs of every region and every person in this commonwealth

and so with that if there's no other persons to speak I'd like to agree say again I I move that the bill passed.

[05:14:23] The question is, shall Senate Bill 30 pass? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[05:14:40] The clerk will close the roll. Ayes 24, noes 16. Ayes 24, noes 16. Senate Bill 30 passes. Returning to page 13.

[05:14:59] Senator from Portsmouth. Madam President, our staff worked about 14 days non-stop to make sure we got this budget done and I think we owe them a debt of gratitude so I cannot let this moment pass without asking each of you to join me and giving them a round of applause. The Senate will

[05:15:34] be at ease. Returning to page 13 of the calendar, Senate Bill 596. The senior senator from Prince

[05:16:38] William. Thank you Madam President. Having voted on the prevailing side by which we concurred with the House substitute on Senate bill 596, we reconsider that vote. The question is, shall the vote by which the Senate concurred with the House substitute for Senate bill 596 be reconsidered?

[05:16:59] All in favor of that motion will record their votes, aye, those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[05:17:20] The clerk will close the roll. Ayes 40, noes zero. Ayes 40, noes zero. The motion is agreed to. Senior Senator from Prince William. Thank you, Madam President.

[05:17:35] Madam President, with the recommendation that the House substitute be rejected, I move that the substitute be agreed to in speaking to that motion. Senator has the floor. Thank you, Madam President. It was just brought to my attention that there's some additional changes that need to happen to this bill, so I ask that we send it to conference.

[05:17:53] With the recommendation that it be rejected, the question is, shall the substitute from the House be agreed to? Shall the Senate concur with the House substitute? All in favor of that motion will record their votes, aye.

[05:18:10] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Aye, zero, no's 40. Aye, zero, no's 40.

[05:18:26] Senate does not concur with the House substitute. The senior senator from Virginia Beach. Thank you Madam President. I rise for a motion. Senator has the floor. Madam President, I'd like to take up for immediate consideration a memorial resolution under Senate Rules 26G. I move that the rules of the Senate be suspended and House Joint Resolution 177 be taken up for immediate consideration.

[05:19:04] The question is, shall the rules be suspended and House Joint Resolution 177 be taken up for immediate consideration? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[05:19:20] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes, 40. No, 0. The rules are suspended to take up the resolution for immediate consideration.

[05:19:37] The clerk will read the title. House Joint Resolution 177, celebrating the life of the Honorable Barry D. Knight. Senior Senator from Virginia Beach. Madam President, I move the resolution be agreed to in speaking to that.

[05:19:57] Senator has the floor. Madam President, we had a conversation last Friday morning when our friend Delegate Barry Knight passed, and this is a memorial resolution in his memory for the passing of him, and it's getting a little choked up here while I'm speaking today on the floor.

[05:20:27] it's just it's right thing to do Madam President and he was a good friend to all of us especially the gentle the senator from Portsmouth and with that Madam President I move the resolution be agreed to all those in favor of agreeing to Memorial Resolution House Joint Resolution number 70 177 please rise the

[05:21:05] resolution is agreed to senator from eastern fairfax inquiry of the clerk does that complete today's calendar yes sir is there any other business to come before the senate the senior senator from loudon thank you madam president madam president i rise for a personal privilege senator has the floor thank you madam president madam president um today we recognize an

[05:21:41] extraordinary milestone the 100th anniversary of the virginia farm bureau earlier this afternoon this body proudly sponsored and unanimously adopted senate resolution 69 to honor a century of service by an organization that has stood shoulder to shoulder with virginia's farmers since 1926. that resolution recognizes what we all know to be true agriculture is not just part of virginia's history it is central to our future it honors the hard-working virginians who feed us clothe us steward our land and sustain rural communities across the commonwealth it acknowledges

[05:22:16] the farm bureau's role in advocating for sound agricultural policy strengthening farm families supporting youth leadership and ensuring that the voices of producers are heard in this capital madam president agriculture remains the largest private industry in the commonwealth the single greatest economic engine in virginia from the eastern shore to the shenandoah valley from south side to the farms and vineyards in my own district in loudon and fauquier counties agriculture drives jobs innovation and opportunity madam president many people think of my district in loud and fockier county as a suburb of washington dc which it is madam president

[05:22:53] but my district is home to the second most number of women farmers in the commonwealth virginia in loudoun county the fourth most in fockier county the number one in loud county for hispanic or latino farmers with fockier carrying the second title for that military veteran farmers Loudoun has the first in the entire state, Fauquier has the second madam president. New farmers, Loudoun has the first, Fauquier has the fourth. Fauquier County has the fourth amount of total acreage of farmland in the Commonwealth madam president. Loudoun County leads in grape production across the state and Fauquier and Loudoun counties are the heart of equine county in the Commonwealth leading in the number of equine farms across the state madam president. And

[05:23:32] this year carries an additional significance for the Farm Bureau. This year we recognized the international year of the woman farmer so i want to take a special moment to recognize the women farmers of virginia who now make up 59 of all agricultural producers in our commonwealth women are leading multi-generational family farms running agribusinesses managing livestock operations cultivating vineyards and shaping the next generation of agricultural leadership they are innovators entrepreneurs conservationists and caretakers of the land and they are absolutely essential to the strength and future of Virginia agriculture.

[05:24:08] So today, as we mark 100 years of the Virginia Farm Bureau, let us recommit ourselves to supporting the farmers who make life in the Commonwealth possible, and especially the women whose leadership continues to grow and shape this vital industry. Madam President, I ask that we join together in celebrating a century of advocacy, stewardship, and service, and in honoring the farmers of Virginia, who quite literally sustain us all. Thank you, Madam President.

[05:24:29] Thank you, Senator. The clerk will report any announcements on the desk. Today, Thursday, February 26th, the Committee on Transportation will meet 15 minutes after adjournment in Senate Room B, GAB.

[05:24:45] The Education and Health Subcommittee on Public Education will meet 15 minutes after adjournment in Senate Room C of the GAB. This is obviously a time change. Tomorrow, Friday, February 27th, the Committee on Rehabilitation and Social Services will meet at 8 a.m., Senate Room A, GAB.

[05:25:06] The Finance and Appropriations Subcommittee on Resources will not meet. The Education and Health Subcommittee on Health Professions will meet at 8.30 a.m. in Senate Room 300, GAB. The Committee on Rules will meet at 10 a.m. in Senate Room C, GAB.

[05:25:24] The Democratic Caucus will not meet. The Republican Caucus will meet 30 minutes before session in Senate Room 2 of the Capitol. The Senator from Portsmouth.

[05:25:43] madam president i move that the senate do now adjourn until 11 a.m tomorrow 11 30 a.m tomorrow the question is shall the senate adjourn until 11 30 tomorrow all in favor of the motion will say aye those opposed no the eyes have it the motion is agreed to the senate stands adjourned until 11 30

[05:26:16] tomorrow chamber be sure to stay connected with live sessions catch up on past meetings

[05:27:59] and explore our full archives anytime on the senate of virginia's youtube channel

[05:28:04] this is the senate of virginia richmond virginia senate chamber

